

Module-6

Intellectual Property Rights: Meaning and Concepts of Intellectual Property, Nature and Characteristics of Intellectual Property, Origin and Development of Intellectual Property, Kinds of Intellectual Property, Intellectual Property System in India, IPRs- Invention and Creativity- Intellectual Property-Importance and Protection of Intellectual Property Rights (IPRs)- **A brief summary of:** Patents, Copyrights, Trademarks, TRIPS and TRIMS , Industrial Designs- Integrated Circuits-Geographical Indications-Establishment of WIPO- Application and Procedures.

Intellectual Property Rights: Meaning

Intellectual property rights are the rights given to each and every person for the creation of new things according to their minds. IPR usually give the creator a complete right over the use of his/her creation for a certain period of time.

Intellectual property rights are the legal rights that cover the benefits given to individuals who are the owners and inventors of work and have created something unique with their intellectual creativity or capability. Every person related to areas such as literature, music, invention, etc., can be granted such rights, which can then be used in their business practices by them.

The creator/inventor gets complete rights against any misuse or use of work without his/her prior information. However, the rights are issued for a limited period of time to maintain equilibrium.

What is the Definition of Intellectual Property Rights?

The definition of intellectual property rights is any and all rights associated with intangible assets owned by a person or company and protected against use without consent. Intangible assets refer to non-physical property, including right of ownership in intellectual property . Examples of intellectual property rights include:

- Patents
- Domain names
- Industrial design
- Confidential information
- Inventions
- Moral rights
- Database rights
- Works of authorship
- Service marks
- Logos
- Trademarks
- Design rights
- Business or trade names

- Commercial secrets
- Computer software

What Are the Types of Intellectual Property?

There are four main types of intellectual property rights, including patents, trademarks, copyrights, and trade secrets. Owners of intellectual property frequently use more than one of these types of intellectual property law to protect the same intangible assets. For instance, trademark law protects a product's name, whereas copyright law covers its tagline.

1. Patents

The U.S. Patent and Trademark Office grants property rights to original inventions, from processes to machines. Patent law protects inventions from use by others and gives exclusive rights to one or more inventors. Technology companies commonly use patents, as seen in the patent for the first computer to protect their investment in creating new and innovative products. The three types of patents consist of:

- **Design patents:** Protection for the aesthetics of a device or invention. Ornamental design patents include a product's shape (Coca-Cola bottle), emojis, fonts, or any other distinct visual traits.
- **Plant patents:** Safeguards for new varieties of plants. An example of a plant patent is pest-free versions of fruit trees. But inventors may also want a design patent if the tree has unique visual properties.
- **Utility patents:** Protection for a product that serves a practical purpose and is useful. IP examples include vehicle safety systems, software, and pharmaceuticals. This was the first, and is still the largest, area of patent law.

2. Trademarks

Trademarks protect logos, sounds, words, colors, or symbols used by a company to distinguish its service or product. Trademark examples include the Twitter logo, McDonald's golden arches, and the font used by Dunkin'.

Although patents protect one product, trademarks may cover a group of products. The Lanham Act, also called the Trademark Act of 1946, governs trademarks, infringement, and service marks.

3. Copyrights

Copyright law protects the rights of the original creator of original works of intellectual property. Unlike patents, copyrights must be tangible. For instance, you can't copyright an idea. But you can write down an original speech, poem, or song and get a copyright.

Once someone creates an original work of authorship (OWA), the author automatically owns the copyright. But, registering with the U.S. Copyright Office gives owners a head-start in the legal system.

4. Trade Secrets

Trade secrets are a company's intellectual property that isn't public, has economic value, and carries information. They may be a formula, recipe, or process used to gain a competitive advantage.

To qualify as a trade secret, companies must work to protect proprietary information actively. Once the information is public knowledge, then it's no longer protected under trade secrets laws. According to 18 USC § 1839(3), assets may be tangible or intangible, and a trade secret can involve information that's:

- Business
- Financial
- Technical
- Economic
- Scientific
- Engineering

Two well-known examples include the recipe for Coca-Cola and Google's search algorithm. Although a patent is public, trade secrets remain unavailable to anyone but the owner.

What Are Some Examples of Violations of Intellectual Property?

The significant violations of intellectual property consist of infringement, counterfeiting, and misappropriation of trade secrets. Violations of intellectual property include:

- Creating a logo or name meant to confuse buyers into thinking they're buying the original brand
- Recording video or music without authorization or copying copyrighted materials (yes, even on a photocopier, for private use)
- Copying another person's patent and marketing it as a new patent
- Manufacturing patented goods without a license to do so

Since intellectual property can be bought, sold, or leased out, it offers many protections equal to real property ownership. Likewise, similar remedies exist. A dispute may end with property confiscation, an order of monetary damages, or cease and desist orders.

Concept of Intellectual Property Rights

Intellectual property rights are the rights given to persons over the creations of their minds, such as inventions, literary and artistic works, designs, and symbols, names, and images used in commerce. Intellectual property is the product of human intellect including creativity, concepts, inventions, industrial models, trademarks, songs, literature, symbols, names, brands, etc.

Intellectual property rights do not differ from other property rights. They allow their owner to completely benefit from his/ her product which was initially an idea that developed and crystallized. They also entitled him/her to prevent others from using dealing with or tampering with his / her product without prior permission from him/ her. He/ she can in fact legally sue them and force them to stop and compensate for any damages. It is believed that IPR initially started in North Italy during the Renaissance era. In 1474, Venice issued a law regulating patent protection that granted an exclusive right for the owner. The copyright dates back to 1440 A.D. when Johannes Gutenberg invented the printing press with replaceable/ moveable wooden or metal letters. Late in the 19th century, a number of countries felt the necessity of laying down

laws regulating IPR. Globally two conventions constituting the basis for the IPR system worldwide had been signed; the Paris convention for the protection of Industrial property (1883) Berne Convention for the Protection of Literary and Artistic works (1886).

Protection of IPR allows the innovator, brand owner, patent holder, and copyright holder to benefit from his/her work, labor, and investment, which does not mean monopoly of the intellect. Such rights are set out in the International Declaration of Human Rights, which provides for the right to benefit from the protection of the moral and physical interests resulting from the right holder's work; literal or artistic product.

Nature & characteristics of Intellectual Property Right:

(1) Intangible property:

IP[1] does not cover the created physical object but retains the conceptual development behind the physical object. Intellectual property law does not deal with the material object in which works of the mind have been represented. The main feature which distinguishes IP from other types of property is its intangibility.

IP is about a person's ability to produce a new idea and put it before the public. Intellectual property: The product does not have any property as such but the strength, judgement, and initiative of the mind that is included in the product. This generates more theoretical value. Intangible product. IPR[2] is awarded in a specific authorship work, mark, design, etc. For the integration[3] of ideas.

(2) Rights & duties

IP not only gives rise to rights of ownership but also to duties. In relation to his work/product, the IP owner has the right to conduct such actions. He is entitled exclusively to produce, copy the work, market the work, etc. He has a negative right also to rule out the exercise of his statutory rights for third parties. In this way, IPR law grants the proprietor's [4] exclusive right to exclusion [5].

The reciprocal requirement must not be infringed on the right by all others. The privilege resulting from the application of IP law gives the owner the right to use the job. Such a right does not extend to others except the IP holders.

(3) creation of statute:

Intellectual property is derived from common law, and it is covered under specific laws.

In accordance with relevant legislation, IPRs are statutory rights. Intellectual property, to put it differently, is statute formation. The right holder is protected by proposals, technical

solutions or any other knowledge conveyed in a legally acceptable manner and subject in some instances to registration procedures.

In addition in the case of certain types of IPR, as is the case for patents and product designs the registration of the work is compulsory According to the applicable legislative requirements, whereas it is voluntary to register with respect to certain other forms of IPR such as trademarks, copyrights or geographical indications.

Some other formalities must be met to obtain such IP privileges. For example, microorganism patent. Similarly, it is a must for the divulgation[6] of an invention to secure a patent. IPR award is exclusively conditional on all statutory requirements.

(4) Territoriality

Intellectual property laws are mainly territorial and apply only within the relevant competence. Although the TRIPS agreement sets the minimum standard in its respective municipal laws for all nations, the IP laws around the world are not harmoniously [7]United. Full IPRs legislation is not in effect.

To order to secure and implement their IPR, developers and inventors of different kind of IPs have to comply with their national law and jurisdictions. The extent of security depends on the national legislation in question.

(5) Assignable

They should obviously be granted[8] because they are privileges. A dichotomy between rights to intellectual property and the actual form in which the work is embedded is conceivable. IP may be bought, sold or licensed, employed, or affiliated.

(6) Dynamism

The IPR is constantly changing. The IP sector is also developing accordingly, as technology in all areas of human activities is changing exponentially. In accordance with the demand for scientific and technological advancement the scope of its defense is being extended and new items are being added to the IPRs sector.

Copyright and protection of plant variety are mentioned as a few of the current developments in the field of IPR. Technological progress and social development require a steady reassessment of the IPR system. In the technological era, developments particularly in the field of IT and biotechnology, require the regular review of IPRs.

(7) subject to public policy

They are exposed to the profound incarnation[9] of public policy. IP seeks to maintain and find a suitable reconciliation between two competing interests. On one hand, customers try to take up works without much trouble, and on the other hand, the owners of intellectual rights need to be adequately compensated.

(8) subject matter of IPR protection

Intellectual property rights eligibility depends on the protection issue. Also, products specifically identified and acknowledged in the Law as the subject of protection are entitled to intellectual property rights. While the minimum requirements laid down in law may be included, protection may still be defined if it is expressly omitted from the subject matter entitled to protection.

Origin of Intellectual Property (IP)

The Intellectual Property (IP) is a term referred to work or inventions that are a result of some individual's original creativity. It basically, means the legal rights arising out of an intellectual activity in any field like literary, industrial and artistic or industrial etc. It includes the results that are the creations of one's creative mind. Prior to the General Agreement on Tariffs and Trade (GATT), the Intellectual Property and its related rights were not a subject, to any international trade negotiations. There's a long history of the Intellectual Property, which is way complex but, also fascinating. It is traced all the way to 500 BCE, when Sybaris, a Greek State made it possible for the citizens of their state, to obtain a patent for one year, for "any new refinement in luxury". Since, then we can conclude that Patent, Copyright and Trademark laws have become more complicated over the centuries but, the intent remains the same.

The laws and legislation procedures relating to the IPR have their roots in Europe. The trend of Patents started in the 14th Century, they were technologically less advanced than England. However, the first ever known Copyrights appeared to be in Italy where, Venice was considered the cradle of Intellectual Property systems. While, the Patents are about 150 years old concept, as first introduction was based on, the British Patent System. To foster creativity and to ensure the possibility for the inventor to make benefits of their creativity.

Development of Intellectual Property

With the ongoing development around it was necessary to protect the rights of the owner of intellectual property since without protecting the innovative work that a person has spent his time on, there would be no promotion of invention and creativeness and without such development it would be impossible to expect the market grow beyond a close boundary.

Development can only be persisted if the rights of the producers and the one who are sweating over the invention are getting protection for their hard work. Without providing exclusivity to them, the market would copy each other and there would be no mark of quality and would be tough for the sellers as well as the buyers in the market to choose product of a quality.

With liberalization the challenge was bigger than before since, not only protection was needed to be given to the product in Indian market but also to protect the intellectual property rights in the international market to achieve exclusivity over the production and distribution of the same.

The same requirement was guaranteed by demonstrating India's commitment to the WTO under the Trade Related Intellectual Property Rights Agreement (TRIPS), government took a leap of steps to make sure India's stance on Intellectual Property laws being acceptable on international level.

On every level, Government of India has made its efforts to make it possible to made Indian laws pertaining to IPR are recognized at global level since accession to the WTO.

Some of the developments are;

It started with the government of India replacing Trade and Merchandise Marks Act, 1958 with the Trade Marks Act, 1999 to bring the Indian trademarks law in persistence of international practice and to make sure India is keeping up its commitment to TRIPS agreement.

The following were the changes;

- Service marks were introduced to the protection, for the first time, through registration.
- Graphic representations, shapes and combinations of colors were induced in the definition of trademark.

An unprecedented step was taken by the trademark registry by issuing an order allowing alterations that may be made to an application for trademark registration. It included "substantial alterations", which would not be allowed and other alteration that may include clerical error/alteration would be accepted by the registrar.

- Interestingly the period of registration was also increased from 7 year to 10 years.
- Under the new law, both registered and unregistered trademarks can be assigned with or without the goodwill of the business.

India also enacted Geographical Identification of goods (Registration and Protection) Act 1999 which provides for registration and better protection of G.I. relating to products that would facilitate identification of goods associated with a place of production, quality, quantity or other distinctive characteristics of such goods.

Examples of such products which are now uniquely protected under the GIG act are Basmati rice, Darjeeling tea, Alphonso mangoes, Malabar Pepper, Hyderabad Grapes etc. which are known in the international market for the quality and place of its production. These goods are of such high quality and place of production is so relevant to them, which made them stand different from any other product in the market which made such requirement of protection for them necessary.

There were constant amendments in copyright law to accommodate with the pace of development in the field and to comply with the WIPO copyright treaty and WIPO performance and phonograms treaty, which made sure that Indian laws are kept in loop for development in relation to newly introduced technological protection measures, which indeed ensured the fair use survives in the digital world by providing unique provisions for fair use, also amended author friendly changes, unique provisions for disabled, etc. to streamline copyright administration.

Recently, Government of India notified the Copyright (Amendment) Rules, 2021 on March 30, 2021, amending the Copyright rules 2013. Although, the draft of this amendment was made public for opinion in 2019. The bill is similar to draft in many dimensions. Main highlight of which is 'copyright board' being replaced by 'appellate board'.

Plenty of emphasis has been given to the amendments, which are identical to the draft, based on the functioning of copyright societies in India. This includes provisions relating to formation of traceable systems for collection and distribution of royalties, the system of dealing with royalties for works whose authors cannot be located or identified, and the facility to search from the database of a copyright society.

Recent amendments are also been made in the patent laws since The Patent (Amendment) Rules 2020 (Revised Rules 2020) came into force from 20 October 2020. Before the Revised Rules 2020, patentees and licensees were supposed to submit statement of commercial working for each annum (January to December). Since, income statements in India are generally generated for a financial year (from 1 April to 31 March), the Revised Rules 2020 will significantly ease filing of statement of commercial working of a patented invention for every financial year.

The amendments make several procedural changes such as replacing the publication of notifications in the Official Gazette with Copyright Journal, and recognition of electronic means of operation.

The ambit of IPR is ever growing and these amendments are necessary to keep up with the pace of development as it requires. Changes are imperative to this field, especially, when world is competing it has become duty of state to protect the rights of the inventors and to promote more of the welfare of the society, more of such changes are needed to be done in near future.

Kinds of Intellectual Property

Copyright

The term 'copyright' concerns the rights of the creators/authors of literary and artistic works. A copyright is also called a 'literary right' or 'author's right'. Copyright gives an author exclusive rights to his creation and prevents the copying and unauthorized publishing of his work. Copyright protection begins at the very moment a work is created and expressed in some tangible form. Copyright protection is granted to a work that is an original creation. Also, the protection extends only to expressions. Mere ideas without any tangible expression are not granted legal protection and do not form the subject matter of copyright. Copyright protects the following two rights of the author:

1. Economic rights i.e., the right of the owner to derive financial benefit from the use of their works by others. For instance, the right to prohibit or authorise reproduction of the work in various forms, the right to prohibit unauthorised translation of the work, etc.
2. Moral rights i.e., protection of non-economic interests of the author. For instance, the right to oppose changes to work and the right to claim authorship, etc.

What kind of works can be protected under copyright?

The following categories of works typically come under copyright protection:

- Literary works such as novels, plays, poems, and newspaper articles;
- Computer programs and databases;
- Films, musical compositions, and choreography;
- Artistic works such as photographs, paintings, drawings, and sculpture;
- Architecture and advertisements, maps, and technical drawings.

In India, the term of copyright protection extends throughout the lifetime of the author and then 60 years after his death.

Law relating to copyright in India : the Copyright Act, 1957

The Copyright Act, 1957 is a comprehensive legislation dealing with copyrights in India. The Act regulates the various aspects relating to copyright regime in India such as:

- Registration of copyright
- Publication, term of copyright
- Assignment, and licence of copyright
- Special rights of broadcasting organisation and performer's rights
- Infringement of copyright and remedies thereof
- Establishment of copyright authorities and copyright societies
- International Copyright

The term of copyright protection provided under the Act for the various categories of works is given below:

1. Literary, dramatic, musical and artistic works: Life of the author plus 60 years after death.
2. Anonymous and pseudonymous works: 60 years from the date of publication. However, if the identity of the author is disclosed before the expiry of that 60 years, then the term of protection shall be life of the author plus 60 years after death.
3. Posthumous works: 60 years from publication.
4. Cinematograph films: 60 years from publication.
5. Sound recordings: 60 years from publication.
6. Government work: 60 years from publication.
7. Works of public undertakings: 60 years from publication.
8. Works of international organisations: 60 years from the publication of the work.

Copyright infringement

Section 51 of the Copyright Act, 1957 provides for 'What constitutes copyright infringement'. Copyright is said to be infringed:

1. when a person does something that the owner of the copyright has the exclusive right to do, or permits for profit the use of any place for the purpose of the communication of the work to the public, where such communication constitutes an infringement of the copyright in the work, without a licence or in violation of the conditions of the licence.
2. When any person makes for sale or hire, sells or lets for hire, or displays or offers for sale or hire, or distributes either for the purpose of trade or to such an extent as

to prejudice the owner of the copyright, or exhibits in public, or imports into India any infringing copies of the work.

Section 52 enlists the acts which do not constitute an infringement of copyright such as fair dealing in any work for personal, private use or for research, reproducing any work for the purpose of a judicial proceeding or replication by a teacher or a pupil in the course of teaching etc.

It is pertinent to note that the Copyright Act provides for both civil and criminal remedies against infringement of copyright.

How to register a copyright in India

The Registrar of Copyrights maintains a Register of Copyrights wherein he enters the names or titles of works and the names and addresses of authors, publishers and owners of the copyright. This entering or recording of names and other particulars of the copyright owners in the register of copyrights is called Registration of copyright.

The procedure for registration of copyright in India is provided under Section 45 of the Copyright Act, 1957 read with Chapter XIII of the Copyright Rules, 2013.

Steps to register copyright

1. Filing of application: The author/publisher/owner or any other person interested in the copyright can make an application (Form-XIV of Copyright Rules) for registration of copyright to the Registrar of Copyrights. Such application must be accompanied by the prescribed fee for entering particulars of the work in the Register of Copyrights.

Also, an application for registration of copyright shall be in respect of one work only. It should be signed only by the applicant, who may be the owner or author of the right. In case, the application is made by the owner of the copyright, an original copy of a no-objection certificate issued by the author in the favour of the owner has to be submitted.

2. Application for registration of copyright in an unpublished work: An application for registration of an unpublished work should be accompanied by two copies of the work.

3. Application for registration regarding an artistic work that is being used or could be used in connection with any goods or services: In case the application for registration is regarding an artistic work that is or can be used in relation to any goods or services, the application must include a statement along with a Certificate from the Registrar of Trademarks that no trademark identical to or deceptively similar to such artistic work has been registered under the Trademarks Act, 1999 or no such application has been made.

4. Application for registration in respect of an artistic work which is capable of being registered as a design: In this case, the application must be supported by an affidavit declaring that:

1. The design has not been registered under the Designs Act, 2000, and
2. That it has not been applied to an article through an industrial process and reproduced more than 50 times.
3. Mode of filing the application: The application for registration of copyright can be filed in following modes:

1. By visiting the Copyright Office in person; or
2. By post; or
3. By online facility
i.e., <https://www.copyright.gov.in/UserRegistration/frmLoginPage.aspx>.

6. Notice of application: The person applying for registration of copyright has to give the notice of the application to every person who claims to have, or has any interest in the subject matter of the copyright or who is disputing the rights of the applicant to the copyright.

7. Entering of particulars in Register of Copyright: A thirty day period is given for filing of objections and if no objections to the registration are received by the Registrar, and on being satisfied that the particulars stated in the application are correct, the Registrar of Copyright shall enter such particulars in the Register of Copyrights.

8. Completion of registration process: The registration process is complete when a copy of the entries made in the register of copyrights is signed and issued by the Registrar of Copyrights or by the Deputy Registrar of Copyrights. Also, every entry made by the Registrar of Copyrights has to be published by him in the prescribed manner.

Need and benefits of registration of copyright

The registration of copyright is optional. However, the registration of copyright offers several advantages to the author or owner of copyright. This can be discerned from Section 48 of the Copyright Act. Section 48 provides that the register of copyright is prima facie evidence of the particulars entered therein and shall be admissible in evidence in all courts. Thus, a person who has got the copyright registered in his name is generally presumed to be the author/owner of the work. Registration of copyright is beneficial due to the following reasons:

- It allows the owner to protect his work from being used in an unauthorised manner.

- It becomes easier to claim ownership and royalties for your work when it is to be used or adapted in any manner.
- Copyright registration specifies the date of publication.
- Registration of copyright in your name might work in your favour in case of any claim of copyright infringement.

Patents

A patent is an exclusive right granted for an invention or innovation, which might be a product, a method or a process, that introduces a novel way of doing something or offers a new technical solution to a problem. In other words, it is a right of monopoly granted to a person who has invented:

1. a new and useful article, or
2. improvement of an existing article, or
3. a new process of making an article.

A patent is granted for inventions having industrial and commercial value. It is the exclusive right to manufacture the new article/manufacture the article with the invented process for a limited period of time (usually 20 years from the filing date of the application) in exchange for disclosure of the invention. A patent owner can sell his patent or grant licence to others to exploit the same.

Criteria for patentability of an invention

1. It should be novel.
2. It should have inventive steps or it must be non-obvious.
3. It should be capable of Industrial application.

What kind of protection is given by patents

- The patent owner possesses the exclusive right to prevent others from commercially exploiting the patented invention.
- Third parties are prevented from manufacturing, using, distributing, selling etc. the patented invention/product without the consent of the patent owner.

Patent law in India: the Patents Act, 1970

The invention of a person can be patented only if the procedure and other requirements prescribed in the Patents Act, 1970 are fulfilled. The Patent Act, 1970 provides for a detailed procedure for obtaining a patent, right from the filing of an application to the grant of a patent. The Act also contains provisions for rights and obligations of the patentee, term of the patent, transfer of patent, surrender, revocation, and restoration of patent, infringement of patent, and remedies thereof. The Act provides for patent protection for a period of 20 years after which the technology or invention goes to the public domain.

Section 3 of the Act provides a list of non-patentable inventions for which no patent could be granted. Under Section 4, the inventions relating to atomic energy are also declared as non-patentable.

It is worth mentioning that earlier no product patent could be granted for medicine, food items and chemicals and only the process of manufacturing medicines, food items and chemicals could be patented. However, after the Patent (Amendment) Act, 2005 product patents can be issued for manufacturing these products.

Patent infringement and remedies

Any violation of the rights of the patentee constitutes infringement of patent such as a colorable imitation of your invention or taking of the essential features of your invention. Under the Patents Act, Sections 47 and 107-A provides for the acts that shall not be considered as an infringement of patent. For example, the import of any machine or other articles by or on behalf of the government or the manufacturing or use of a patented process by or on behalf of the government does not constitute patent infringement. The various remedies available against patent infringement are as follows:

- Injunction
- Damages or account of profits
- Delivery up or destruction of infringing goods
- Certificate of validity

Procedure of obtaining a patent in India

You can file a patent application at the Patent Office in physical mode or in electronic mode.

Following are the steps involved in obtaining a patent:

1. **Filing of application**

- Place of filing patent application: A patent application has to be filed at the head office of the patent office or the branch office, within whose territorial limits:
 1. Applicant normally resides or has a domicile, or
 2. Applicant has a place of business, or
 3. At the place where the invention actually originated.
- Mode of filing application: You can submit the patent application through post or by hand. You can also opt for e-filing through <https://ipindiaonline.gov.in/epatentfiling/user/frmLogin.aspx>.
- Who can file the application: Following persons either alone or jointly can file the patent application:
 1. Any person claiming to be the true and first inventor of the invention;
 2. Assignee of the above in respect of the right to make such an application;
 3. The legal representative of any deceased person who was entitled to make such an application immediately before his death.
- Form of application: Every patent application shall be for one invention only.
- Every application must specify that the applicant possesses the invention and identify the individual claiming to be the true and first inventor. If the individual claiming to be the true and first inventor is not the applicant or one of the applicants, the application must state that the applicant believes the person so listed/named to be the true and first inventor.
- Application must be accompanied by a provisional or a complete specification.

2. **Filing of provisional and complete specification**

- What is patent specification: A patent specification is a technical document describing the invention. The provisional specification gives the initial description of the invention on the filing of the patent application. Whereas a complete specification gives full and sufficient detail of an invention in such a manner that a person skilled in the art can use the invention when he reads such a description.
- If the patent application is accompanied by a provisional specification, the complete specification has to be filed within 12 months from the date of the filing of such

application. In case it is not filed within the said period, the application is deemed to have been abandoned.

3. **Claim of priority date:** Priority date is the date on which the patentee claims his invention. There shall be a priority date for each claim of a complete specification. Generally, the priority date is the date of filing of the provisional specification provided the claims contained therein are fairly based on the description of the invention as given in the provisional specification. But when the patent application is accompanied by complete specification or if any application is post-dated to the date of filing of complete specification, in that case the priority date shall be the date of filing of the complete specification.
4. **Amendment of specification:** The applicant may amend the application, the complete specification and other documents before or after the grant of the patent. Such amendment shall be in accordance with the procedure prescribed as regards to the permission of the Controller and publication of the amendment.
5. **Publication and Examination of application**
 - The patent application shall not be open to the public until the expiry of 18 months from the date of filing of the application or the date of the priority of the application. However, applicants may request the Controller to publish the application at an earlier date.
 - The application is published within one month after the expiry of the said period of 18 months.
 - Thereafter, a request has to be made by the applicant or other interested persons for examination of the application. Such a request shall be made within 48 months from the date of priority of the application or from the date of filing of application, whichever is earlier. If the request is not made within the prescribed period, the application is treated as withdrawn.
6. **Time for putting application in order for grant:** The applicant must comply with all the requirements imposed on him by or under the Act in relation to the application within 12 months from the date on which the Controller forwarded to the applicant the first statement of objections to the application, complete specification, or other documents related thereto.
7. **Opposition to grant of patent**
 - Pre-grant opposition: Before the patent has been granted, any person may, in writing, represent by way of opposition to the Controller against the grant of the patent.

- Post-grant opposition: After the grant of the patent but before the expiry of 1 year from the date of publication of grant of patent, any interested person may give notice of opposition to the Controller. Thereafter, the Controller constitutes the Opposition Board and the patent may be revoked on the basis of the report of the Board.

8. Grant of patent

- If the application for patent is found to be in order for grant of patent, the patent shall be granted.
- On the grant of patent, the Controller publishes the fact of such grant and thereupon the application and other documents shall be open for public inspection.

What are the benefits of patent registration

1. Patent registration ensures the complete protection of your patent/invention against any unauthorised use for a period of 20 years.
2. Patent registration allows you to enjoy monopoly in the market as regards your invention during the period of patent protection.
3. Patent registration confers exclusive right to exploit the patent on patentee or his licensee or assignee.
4. You can licence the patent and gain royalties for the same.

Trademarks and service marks

A trademark is a symbol that is used to distinguish the goods of one enterprise from its competitors. A trademark may consist of a single letter, logo, symbol, design, or numerals and three-dimensional features such as shape and packaging, etc. Section 2(zb) of the Trademarks Act, 1999 defines “trademark” as a mark capable of graphical representation and which can be used to distinguish the goods or services of one person from those of others. A trademark may include the shape of goods, their packaging, and a combination of colours. Hence, distinctiveness is the hallmark of a trademark.

Trademarks used in connection with services such as tourism, banking, etc., are called Service Marks.

The owner has the exclusive right to the use of a registered trademark. There are 45 classes of trademarks, consisting of 34 classes of products and 11 classes for services.

What is the function/purpose of a trademark

- A trademark is a symbol that identifies a product and its source.
- It reflects the goodwill of a business.
- It assures the consumer about the established quality of the product.
- It serves as an advertisement for the product.
- A registered trademark provides legal protection to your brand.
- It helps to establish a dedicated consumer base by preventing others from imitating your brand.

Law regulating to trademarks in India: the Trademarks Act, 1999

The Trademarks Act, 1999 was enacted to provide for the registration and better protection of trademarks for goods and services, as well as to prevent the use of fraudulent marks. The Act contains provisions regarding:

1. Registration of trademarks
2. Effect of registration
3. Rights of the trademark holder
4. Special provisions relating to protection of trademarks through international registration under the Madrid Protocol
5. Use of trademark and registered users
6. Collective marks
7. Certification of trademarks
8. Assignment and transmission of trademark
9. Infringement and passing off action in trademark and legal remedies thereof, etc.

A trademark is registered for 10 years but it can be periodically renewed and can be used for an indefinite period.

Infringement of trademark

In order to constitute infringement of a registered trademark, following conditions are required to be fulfilled:

1. The person is not authorised to use the trademark.
2. The infringing trademark is similar/identical/deceptively similar to the already registered trademark.
3. The infringing trademark must be used in the course of regular trade in which the registered proprietor or user is already engaged.
4. The infringing trademark must be printed represented usually in advertisement, invoices or bills. Mere oral use of a trademark is not infringement.
5. Using either the whole of the registered trademark or an adopted one by making a few additions and alterations.

Section 29 of the Trademarks Act provides for the common forms of trademark infringement. For instance, the advertisement of a registered trademark of another for promotion of one's trade amounts to infringement. Following remedies are available to the trademark owner against infringement of his trademark:

1. Filing suit for infringement
2. Criminal remedies

Process of registration of trademark in India

The various steps involved in registration of trademark are as follows:

Application for registration

- A person claiming to be the proprietor of a trademark used or proposed to be used by him, who desires to register it has to file an application with the Registrar for registration of his trademark. Such an application shall be made in writing and must be accompanied by prescribed fees.
- A single application may be made for registration of a trademark for different classes of goods and services.
- The application has to be filed in the office of the Trade Marks Registry within whose territorial limits the principal place of business in India of the applicant is situated.

Refusal, acceptance and withdrawal of acceptance

- The Registrar may accept or reject an application after it has been received. The application may be accepted with or without amendments, modifications, conditions and limitations.

- If after acceptance, but before registration, the Registrar discovers that the application was erroneously accepted, he may withdraw the acceptance.

Advertisement of application

- The Registrar shall after acceptance of the application, cause the application to be advertised in the prescribed manner.
- The application is advertised in the Trademark Journal for the purpose of inviting objections from interested persons.
- The Registrar may cause the application to be advertised before acceptance in certain cases.

Opposition to registration

- Any person may within 4 months from the date of the advertisement give a written notice of his opposition to the registration. The notice of such registration is given to the applicant and thereafter evidence is submitted to the Registrar. After hearing the parties, the Registrar decides as to whether the registration is to be permitted or not.

Registration

- If the application for trademark registration is accepted and not opposed, or if opposed, the objection is ruled in the applicant's favour, the Registrar must register the trademark within 18 months of the filing of the application.
- The date of registration of a trademark is the date of making of the said application.
- On registration of a trademark, the Registrar shall issue to the applicant a certificate in the prescribed form of the registration thereof, sealed with the seal of the Trademarks Registry.

Benefits of trademark registration

1. A registered trademark is an intangible asset that adds value to the business.
2. Trademark registration aids in creating brand value and gaining a strong position in the market.
3. Registration of a trademark is prima facie evidence of its validity.
4. The registered trademark holder has the exclusive right to use that mark and to obtain relief in case of infringement of trademark.

5. Trademark registration is for a period of 10 years and can be renewed as well.
6. A registered proprietor of a trademark has the right to transfer his right through licence or assignment of his trademark.

Industrial designs

An industrial design means the ornamental or visual aspects of an article. It may consist of three-dimensional features, for instance, the shape of an article, or two-dimensional features, such as lines, patterns, or colour. An industrial design is purely aesthetic, non-functional, and has no utility. It is necessary to provide legal protection to the creative originality of an industrial design to prevent others from copying it.

Type of protection provided by industrial design

The owner of registered industrial design reserves the right to prevent others from manufacturing, selling, or importing articles bearing or embodying a design which is a copy of or is substantially similar to the protected design.

Kinds of products that can come under Industrial design protection

- Products of industry and handicraft items
- Household goods
- Lighting equipment
- Jewellery
- Electronic devices
- Textiles, etc.

Law relating to designs in India: the Designs Act, 2000

The Designs Act, 2000 seeks to promote the creation of novel, original designs along with balancing competing interests by granting the time-bound monopoly right to use registered industrial design by the owner. The Act contains provisions regarding registration of designs, copyright in registered designs, industrial and international exhibitions, restoration of lapsed designs, the penalty for infringement of registered designs, etc.

Geographical Indications (GI)

A geographical indication (GI) is used to identify goods having a specific geographical origin. These indications denote quality, reputation, or other characteristics of such goods essentially attributable to their geographical origin. Generally, geographical indications are used for foodstuffs, agricultural products, wine, industrial products and handicrafts. Examples of GI include Basmati Rice, Darjeeling Tea etc.

Benefits of registration of GI

- Confers legal protection to domestic/national GI which in turn boosts exports.
- Prevents others from making unauthorised use of a Registered Geographical Indication.
- Promotes the economic well-being of producers of items produced in a specific geographic area.

Law relating to GI in India: the Geographical Indications of Goods (Registration and Protection) Act, 1999

The Geographical Indications of Goods (Registration and Protection) Act, 1999 provides for the registration and better protection of geographical indications relating to goods. The Act contains provisions relating to the establishment of a Geographical Indications Registry, registration of geographical indications of goods, rights conferred by registration, registration of authorised users of registered geographical indications, provisions for renewal, rectification and restoration of geographical indications, and prohibition of registration of geographical indication as a trade mark, etc.

Trade Secrets

Trade Secrets are IP rights on confidential information which may be sold or licensed. A trade secret refers to any confidential business information and may include designs, drawings, plans, business strategies, R & D related information, etc. In order to qualify as a trade secret, the information should be commercially valuable i.e. useful in a trade or business, known to a small number of people, and subject to reasonable steps taken by the rightful holder of the information to keep it secret.

Types of trade secrets

- Technical information such as information regarding manufacturing processes, designs, drawings of computer programs, etc.

- Commercial information, such as distribution methods, advertising strategies, etc.
- Financial information, formulas, recipes, secret combination of elements, source codes, etc.

Layout designs of integrated circuits

Integrated circuits are used in products such as television, radio, mobile, washing machine, and data processing instruments. The layout designs of integrated circuits not only reduce the space but also enhance the capacity and performance of the system. In India, the Semiconductor Integrated Circuit Layout Design Act, 2000 regulates the registration, use, and protection of original and distinct layout designs.

The Semiconductor Integrated Circuits Layout Designs Act, 2000

The Act deals with the protection of Semiconductor Integrated Circuits layout designs. It has been enacted to give effect to Section 6 in Part II of the TRIPS Agreement relating to Layout-Design (Topographies) of Integrated Circuits. The Act contains provisions relating to registration of Semiconductor Integrated Circuits layout designs including the procedure and duration of registration, the effect of registration, assignment and transmission of registered layout-design, use of layout-design, and penalty for infringement of layout-design, etc.

The Intellectual Property System in India

The origins of India's IPR system date back to British colonial rule, when as a colony the state enacted various rules and enforcement mechanisms pertaining to IP rights. Post-independence, India retained elements of these structures while updating some guiding regulations and other bureaucratic structures. As India moved toward liberalization, privatization, and globalization in the 1990s and later, Indian policymakers made further adjustments to keep up with growing needs of domestic and international stakeholders. Indian IPR Laws fully conform to the Agreement on Trade Related Aspects of Intellectual Property Rights under WTO aegis.

IPR Policy 2016

Adopted in May 2016, the IPR Policy is a giant leap by the Government of India to spur creativity and stimulate innovation. It lays the roadmap for the future of IPRs in India. The Policy seeks to reinforce the IPR framework in the country that will create public awareness about economic, social and cultural benefits of IPRs among all sections of the society, stimulate IPR generation and commercialization, modernize and strengthen service-oriented IPR administration (see **Annexure I**) as also the enforcement and adjudicatory mechanisms for combating IPR infringements.

Vision Statement of the Policy

(To create) An India where creativity and innovation are stimulated by Intellectual Property for the benefit of all; an India where intellectual property promotes advancement in science and technology, arts and culture, traditional knowledge and biodiversity resources; an India where knowledge is the main driver of development, and knowledge owned is transformed into knowledge shared.

The Policy lays down seven objectives which are elaborated with steps to be undertaken by the identified nodal Ministry/ Department. The objectives of the Policy are:

- 1) **IPR Awareness: Outreach and Promotion** - To create public awareness about the economic, social and cultural benefits of IPRs among all sections.
- 2) **Generation of IPRs - To stimulate the generation of IPRs:** India has a large talent pool of scientific and technological talent spread over R&D institutions, enterprises, universities and technical institutes. There is a need to tap this fertile knowledge resource and stimulate the creation of IP assets. (see **Annexures II and III** for no. of applications for patents and top patentees.)
- 3) **Legal and Legislative Framework** - To have strong and effective IPR laws, which balance the interests of rights owners with larger public interest.
- 4) **Administration and Management** - To modernize and strengthen service- oriented IPR administration.
- 5) **Commercialization of IPR** - Get value for IPRs through commercialization.
- 6) **Enforcement and Adjudication** - To strengthen the enforcement and adjudicatory mechanisms for combating IPR infringements.
- 7) **Human Capital Development** - To strengthen and expand human resources, institutions and capacities for teaching, training, research and skill building in IPRs.

The present IPR Policy aims to integrate IPR as a policy and strategic tool in national development plans. It foresees a coordinated and integrated development of IP system in India and the need for a holistic approach to be taken on IP legal, administrative, institutional and enforcement related matters.

IPRs- Invention and Creativity

What is innovation?

So **what does innovation really mean?** And how does it differ from **invention** and **creativity** in a business? Let's start from a definition of innovation, invention and creativity:

- **Innovation** is the process of turning a new concept into commercial success or widespread use.

- **Invention** is the creation of a new idea or concept.
- **Creativity** is the act of turning new and imaginative ideas into reality.

Creativity, invention, and innovation are all interrelated and necessary for growth to occur. We can follow any successful company and see an investment of time and effort into these three concepts. Based on our experience and research conducted, we have discovered these insights:

Creativity

Creativity is the act of channeling imagination into something concrete. It is the very first stage of design, where ideas start to actually take form, and a plan can be developed.

Examples of creativity:

- in the case of Uber, creativity was necessary in producing the **concept of ride sharing** and of making driving jobs accessible to any individual.
- another example can be the **Google Glass**, which although were very creative at the time (new, different in the market), were not necessarily innovative (monetary return over investment made by the company).

Invention

Invention is the physical creation of a new concept or idea. Also, from Nesta's innovation policy toolkit, it is defined as The creation of an idea to do or make something without verification that it works, or is commercially valuable. Invention cannot occur without creativity, but just creativity is not enough to properly develop an idea.

Examples of invention:

- **product designs, business models, or working prototypes.**
- Uber channeled invention in creating a solid and working business model, based upon the ideas they had formed in the creation stage.

Innovation

Innovation ties everything together in business. According to British Standards, **Innovation is the successful exploitation of new ideas.** It involves turning an invention into a commercial success and encouraging its widespread use. This is the stage where bold ideas, once properly

developed, are brought to the public eye. This is what Uber has achieved, now that its product is in use all over the world and benefits people everywhere.

Examples of innovation:

- successful **products and services** like Care of, Amazon Scout, Impossible Food, Google's self-driving taxis, ...
- successful **process innovations** like Amazon predictive orders, or additive manufacturing processes.

Once again, Innovation cannot happen without creativity or invention, and neither creativity nor invention is useful in business if not properly executed.

As can be clearly seen in the example of Uber, **all the three steps are crucial in order to create a profitable business.**

Uber achieved innovation through creative ideas, a profitable business plan, and widespread marketing, all of which allowed the product to completely change the car sharing industry. These three stages are steps that will allow you to create and commercialize your product, and make your business grow and succeed.

Importance of IPR

Positive Impacts :

IPRs play very important role in the progress and development of the society. IPRs not only provide incentive to the creator of his creation but also lead to a healthy competition among creators which ultimately leads to the progress of the society. Some of the positive impacts of IPR are:

IPRs are important for free flow for energy for enhancing invention and research. IPRs provide incentive to the individuals for new creations. IPRs provide due recognition to the creators and inventors. These laws provide them both the means and incentive to create newer works, products and services

Intellectual Property Rights enhance innovation and creativity by protecting the rights of inventors and artists. Since the filing of patents requires the disclosure of information that would enable others to replicate the inventor's discovery, others can use and build upon this shared knowledge to create newer and/or better products. IPRs ensure material reward for intellectual property.

IPRs ensure the availability of the genuine and original products. Intellectual Property rights, such as patent and copyrights, are an important means used by firms to help protect their investments in innovation (Shankar Narayanan, 2010).

IPRs may be helpful in the solution to global challenges like in the field of alternate sources of energy, new products to the farmers and development of low cost drugs for poor people.

IPRs are necessary to stimulate economic growth. Protection of intellectual property rights is essential in maintaining economic growth. They encourage fair trading which would contribute to economic and social development. Effective enforcement of intellectual property rights is critical to sustaining economic growth across all industries and globally.

Negative Impacts:

Though the purpose of IPRs is to enhance innovation and creativity by protecting the rights of creators and leading to the growth and advancement of human beings but do IPRs actually play a constructive role in the progress and development of society and mankind or it is a form of intellectual protectionism or a form of a temporary monopoly enforced by the state, is an issue of great concern.

They are considered to benefitting concentrated i.e. IPRs confer authority over resources to a few. The few gain power over the goals of many. The objective of IPRs is to protect the public interest but, in fact, the public interest is harmed. Pharmaceutical product prices form substantial portion of health care costs and strong intellectual property protection is one of the major reasons for high health care costs (Agatha, 2013). For example, patent of life saving drugs had allowed the countries to charge higher than the marginal cost of the production in the name of cost of research and development. This has led to an increase in the cost of drugs and they are not affordable by the poor sections of the society. When there is control by some particular group, IPRs actually discourage invention. Patent of the ideas may prevent the owner of a property to utilize it according to his wishes. In order to serve the purpose IPRs must focus on the needs of the poor and developing countries but in reality intellectual properties tend to be governed by economic goals preventing the progress of poor. Thus, IPRs are considered as intellectual protectionism, intellectual monopoly or government-granted monopoly by which the public interest is harmed and progress is stopped.

Protection of Intellectual Property Rights (IPRs)

Intellectual property rights (IPR) promote innovation and creativity, which in turn generates jobs and improves competitiveness. Intellectual property rights enable authors, artists, designers, inventors

and other IPR users to benefit when others use their creations and inventions. The EU needs an attractive, affordable and efficient intellectual property rights (IPR) system to compete on the global scale. This is particularly important for SMEs who do not have the same level of resources to manage their IP portfolio as bigger companies.

Patents: An exclusive right granted for a new technical invention. A patent holder can grant a licence to somebody wishing to produce copies of the invention against payment of a fee (or royalty), thus obtaining a return on the investment. A **standard essential patent (SEPs)** is a patent essential to implement a specific industry standard or technical solution. For example, smartphones or tablets connect to the internet via standardised technologies such as WiFi or 4G, which are protected by SEPs.

Trademarks (or 'brands'): A word, logo or symbol that competitor companies may not use once it has been protected.

Copyright ensures that authors, composers, artists, film makers and other creators receive recognition, payment and protection for their works such as books, films, musical works, paintings, photographs

Designs: The outward appearance of a product;

e.g. the shape of a smartphone, vacuum cleaner, loud speaker, lamp, armchair or a car

Geographical indications: The name of a location associated with a product (e.g. Champagne or Prosciutto di Parma) which gives an assurance that the product has been produced in a particular place, often according to traditional practices or recipes.

Trade secret: A valuable piece of know-how and business information that is treated as confidential because it gives the company a competitive advantage (for example, a recipe, the results of a marketing study, the launch date of a new product, or the price offered in a bidding procedure).

A brief summary of: Patents

What Is a Patent?

A patent is the granting of a property right by a sovereign authority to an inventor. This grant provides the inventor exclusive rights to the patented process, design, or invention for a designated period in exchange for a comprehensive disclosure of the invention. They are a form of incorporeal right.

Government agencies typically handle and approve applications for patents. In the United States, the U.S. Patent and Trademark Office (USPTO), which is part of the Department of Commerce, handles applications and grants approvals.

Understanding Patents

Most patents are valid for 20 years in the U.S. from the date the application was filed with the USPTO, although there are circumstances where exceptions are made to extend a patent's term. U.S. patents are only valid in the United States and U.S. Territories. If seeking protection outside of the United States, it is important to research the intellectual property rights of other nations and apply for protection with their governing authorities.

According to the U.S. Patent and Trademark Office, a patent can be granted to any person who:

Invents or discovers any new and useful process, machine, manufacture, or composition of matter, or any new and useful improvement thereof, may obtain a patent, subject to the conditions and requirements of the law.¹

Types of Patents

There are three types of patents available in the United States: utility patents, design patents, and plant patents. Each has its own specifications and durations.

Utility Patents

Utility patents, or patents for invention, issue legal protection to people who invent a new and useful process, an article of manufacture, a machine, or a composition of matter. Utility patents are the most common type of patent, with more than 90% of patents issued by the U.S. government belonging to this category.² A utility patent lasts for 20 years from the date of filing as long as maintenance fees are paid. Maintenance fees are surcharges applied to utility patent applications filed after December 12, 1980.³

United States Patents and Trademarks Office. "Maintain Your Patent."

Design Patents

Design patents are patents issued for original, new, and ornamental designs for manufactured products. Design patents protect the design or look of something. They require the invention to which the design belongs to be original and useful. Design patents last for 15 years for applications filed after May 13, 2015. For applications filed before May 13, 2015, patents last for 14 years from the date of the filing. Maintenance fees do not apply to design patents.²

Plant Patents

Plant patents go to anyone who produces, discovers, and invents a new kind of plant capable of reproduction. These patents are granted for 20 years from the date of filing and no maintenance fees apply.²

Patents provide an incentive for companies or individuals to continue developing innovative products or services without the fear of infringement. For example, large pharmaceutical companies can spend billions of dollars on research and development. Without patents, their drugs and medicines could be duplicated and sold by companies that didn't research or invest the needed capital for R&D.

In other words, patents protect the intellectual property of companies to help their profitability. However, patents also serve as bragging rights for companies demonstrating their innovativeness.

How to Apply for a Patent

Before making a formal application, an applicant should research the Patent and Trademark Office's database to see if another person or institution has claimed a patent for a similar invention. The invention must be different from or an improvement upon a previous design to be considered for a patent. Applicants need to take care to maintain accurate records of the design process and the steps taken to create the invention. Enforcing the patent is up to the person or entity that applied for the patent.

To apply for a patent in the United States, the applicant submits specific documents and pays associated fees. Written documentation includes drawings, descriptions, and claims of the item to be patented. A formal oath or declaration confirming the authenticity of the invention or improvement of an existing invention must be signed and submitted by the inventor. After fee payment, the application is reviewed and either approved or denied.

Examples of Patents

One of the most notable patents in the past 40 years was the personal computer filed in 1980 by Steve Jobs and three other employees of Apple Inc.⁵

King C. Gillette patented the razor in 1904 and was dubbed a "safety razor."⁶ Garrett Morgan was granted a patent for the traffic light in 1923.⁷ The patent for the television was issued in 1930 to Philo Taylor Farnsworth for the "first television system."⁸

United States Patent and Trademark Office. "Patent 1,773,980."

At age 20, Farnsworth had created the first electric television image and went on to invent an early model of the electronic microscope.

IPR Status of India

India currently ranks 60th out of 127 countries on the Global innovation Index (GII) 2017, co-published by World-Intellectual Property Organization (WIPO), Cornell University and INSEAD¹³ with Confederation of Indian Industry & others as Knowledge Partners

India ranks 14 overall in the presence of global R&D companies, considerably better than comparable groups of lower- and upper-middle-income economies. India also surpasses most other middle-income economies in science and engineering graduates, gross capital formation, Gross Expenditure on Research and Development (GERD) performed by business, research talent, on the input side; quality of scientific publications, growth rate of GDP per worker, high-tech and ICT services exports, creative goods exports, high-tech manufactures, and IP receipts on the output side.

A brief summary of: Copyrights

What Is Copyright?

Copyright refers to the legal right of the owner of intellectual property. In simpler terms, copyright is the right to copy. This means that the original creators of products and anyone they give authorization to are the only ones with the exclusive right to reproduce the work.

Copyright law gives creators of original material the exclusive right to further use and duplicate that material for a given amount of time. Once a copyright expires, the copyrighted item becomes public domain.

How Copyrighting Works

When someone creates a product that is viewed as original and that required significant mental activity to create, this product becomes an intellectual property that must be protected from unauthorized duplication. Examples of unique creations include:

- Novels
- Art
- Poetry
- Musical lyrics and compositions
- Computer software
- Graphic designs,
- Film
- Original architectural designs
- Website content

One safeguard that can be used to legally protect an original creation is copyright. Under copyright law, a work is considered original if the author created it from independent thinking void of duplication. This type of work is known as an Original Work of Authorship (OWA).

Anyone with an original work of authorship automatically has the copyright to that work, preventing anyone else from using or replicating it. The copyright can be registered voluntarily by the original owner if they would like to get an upper hand in the legal system in the event that the need arises.

Not all types of work can be copyrighted. A copyright does not protect ideas, discoveries, concepts, or theories. Brand names, logos, slogans, domain names, and titles also cannot be protected under copyright law. For an original work to be copyrighted, it has to be in tangible form. This means that any speech, discoveries, musical scores, or ideas have to be written down in physical form in order to be protected by copyright.

In the U.S., original owners are protected by copyright laws all of their lives until 70 years after their death. If the original author of the copyrighted material is a corporation, the copyright protection period is 95 years from the date of publication or 120 years, whichever expires first.

U.S. copyright law has experienced a number of amendments and changes that have altered the duration of copyright protection. The "life of the author plus 70 years" protection can be attributed to the 1998 Copyright Term Extension Act, (also known as the Mickey Mouse Protection Act or Sonny Bono Act), which generally increased copyright protections by 20 years.

A brief summary of: Trademarks

Trade mark is a mark applied to any product or service that sets one producer's products or services apart from similar products made by another company. Any product or service with a trade mark on it gives the buyer the idea that it has that quality.

Definition:

Trade Mark **Sec 2(1)(zb)** Mark capable of represented graphically and capable of distinguishing goods/services of one person from those of others. It shows a connection between goods and person.

Procedure for Registration of Trade Mark

Under Section 3 (the "Controller General of Patent, Design and Trade Marks"), the government established the Trade Marks Registry, where applications for trademarks may be filed. Several

classes of goods or services are eligible for trademark grants. The registration of a trademark serves as prima facie proof that all legal requirements have been duly met. At the Trade Mark Registry's head office, a register of trademarks is kept. Any trade mark may be submitted for registration under Section 18 by the individual claiming ownership. These applications may be turned down for one of two reasons: Absolute Justifications for Rejection According to Section 9, the Registrar may reject a trademark application on the following grounds in its exclusive discretion:

If mark is devoid of any distinctive character, e.g. where any character of any language or any shape has not been especially designed or visible.

- Any mark which shows just kind, quality, quantity or intended purpose of any goods, e.g. trademark of any goods can't be "500 gram"
- Mark consisting of marks or indications which are customary in current language, e.g. OMG (abbreviation of Oh My God) cannot be trade mark.
- However where trademark which bears distinctive character because of its use, or is well-known to public is allowed, e.g. "Sugar-free" mark shows just quality but still allowed because this product is well-known to public
- If a mark is capable to deceive or cause confusion to public, or hurt religious susceptibility, or is obscene, it will not be registered → Mark consisting of shape of natural goods (e.g. Neem leaf) or such shape which is necessary to obtain a given technical result shall not be registered.

Grounds for Rejection

Sec 11 (as amended by Trade Mark (Amendment) Act, 2010) provides that Registrar will reject the trademark application on relative grounds which are:

- Where mark is identical and affixed to similar goods or service, e.g. Lux washing powder
- Where mark is similar and affixed to identical or similar goods or service, e.g. Nirama washing powder (Original is Nirma)
- Where mark is identical or similar and affixed to goods which are not similar, if such mark is well-known to public e.g. Lux shoes

- Where mark's use is prevented by law of passing-off or copyright However, Registrar shall not reject any application for trade mark on the grounds specified in point c and d supra, unless an objection is raised by proprietor of earlier trade mark.

Sec 14 provides that if any mark falsely suggests a connection with a living person or a person who died within 20 years prior to application of trade mark, then Registrar can demand consent of such person or his legal representative.

Registered Trade Mark

According to Section 20, the Registrar must publish a trade mark application whenever it is submitted to him in the manner specified. Within three months of the date the application was published, anyone may object. Trademark is granted if application has not faced objection or if opposition has been rejected in the applicant's favour. Trademarks have a 10-year term with the option to periodically renew them for additional 10-year terms.

The Registrar may delete a trade mark if it is not renewed after 10 years, however it may be reinstated within a year of the removal date. The Registrar may permit a mark to be registered as an associated trade mark when the owner of a trade mark applies for another mark that is the same as or similar to an earlier registered trade mark.

Initial registration is prima facie evidence of its legality; nevertheless, the owner of a registered mark cannot intervene if someone is using a mark that is confusingly similar to one that was registered earlier. Owners of unregistered marks may only bring passing-off claims and not infringement claims. In general, the order of use determines who owns a mark. Priority can be established simply by a prior sale of the item.

Infringement of Registered Trade Mark

Sec 29 provides that if a person who is not registered proprietor of mark uses a mark which is identical or deceptively similar to registered trade mark, it is called infringement. Further, registered trade mark is infringed if:

1. Mark is identical and is used in respect of similar goods/services, or
2. Mark is similar and is used in identical or similar goods/services, or
3. Mark is identical and is used in respect of identical goods, and It is likely to cause confusion on the part of public. Further, following action is also called infringement;

4. Mark is identical or similar to registered trade mark and used in respect of goods which are not similar,
5. Using someone else's trade mark as his trade name as dealing with similar goods.
6. Affixing someone else's trade mark to goods or packing or using such mark in business papers or advertisements.

What is Not Infringement of Trade Mark:

Where mark is used with honest business practice without taking unfair advantage, it is not deemed to be infringement. Following acts are not infringement:

1. If trade mark is used to indicate kind, quality or quantity etc of any goods/service.
2. If trade mark was registered subject to certain conditions.
3. Where mark is used in such types of goods/services for which owner of that mark had impliedly consented to its use.
4. Registered trade mark can be used in relation to parts and accessories to other goods/services.

Offence and Penalties:

Following penalty provisions are prescribed under this Act:

1. Penalty of imprisonment of 6 months to 3 years and fine upto Rs 2 lakh for applying false trade mark or false trade description.
2. Any removal or sale of cotton yarn or cotton thread which are not marked in accordance with provisions of this Act is liable to forfeited.
3. Any person who falsely represents a trade mark to be registered trade mark is punished under this Act.
4. In case of offence is committed by Company, every person in charge of the Company, as well as the Company shall be deemed to be liable. Where such contravention is committed with consent or with negligence on the part or director, manager or secretary, they shall also be deemed to be guilty.

A brief summary of: TRIPS and TRIMS

What is TRIPS?

The Trade-Related Aspects of Intellectual Property Rights (TRIPS) adheres to member states' core trade principles concerning intellectual property; all WTO members must abide by it. The TRIPS Agreement stipulates reasonable exceptions and constraints to reconcile intellectual property rights with community health and economic progress objectives.

The most robust international IP agreement, TRIPS, tends to play an influential role in fostering commerce in creativity and knowledge, addressing trade disputes comprising intellectual property, and enabling WTO members with the autonomy to pursue their domestic policy goals. The agreement also shapes the intellectual property system regarding innovations, technology transmission, and public welfare.

The TRIPS Agreement must be assessed and implemented under the jurisdiction of the TRIPS Council. The TRIPS agreement was outlined at the time of the Uruguay Round that lasted from 1986 to 1994 for GATT. The terminology "Berne and Paris-plus" also refers to the TRIPS Agreement.

What is Intellectual Property Rights?

Intellectual property is an umbrella term for a collection of intangible or non-physical assets and is granted to individuals over their creative creations. Intellectual property is the right to use and control one's intellectual property. It is a legal right for anyone who owns or has an intellectual property right. Therefore, individuals, businesses, and governments must defend their intellectual property. To protect intellectual property rights, individuals and communities must comprehend how they work and the rights they grant to someone. The categories of intellectual property rights include

- industrial designs
- trade secrets
- exclusionary rights over new plant varieties
- geographical indications
- trademarks
- copyright
- patents

Significance of TRIPS

The TRIPS Agreement has its key focus on safeguarding intellectual properties in the World Trade Organization and the international trading system. The TRIPS agreement is often a pillar of the World Trade Organization. The remaining two are trading in services and commodities (the traditional competence of the GATT).

Before TRIPS, there were notable sectoral discrepancies in the range of IP protection and enforcement. However, as IP grew more crucial to commerce, these discrepancies became a focus of contention in international economic relations. To have more order and reliability and to adjudicate controversies in an orderly manner, it was therefore thought advisable to endorse new trade regulatory requirements for IP rights.

Relaxation Favoring TRIPS

The following are the favoring relaxations associated with the TRIPS agreement:

- This would increase access to immunizations for residents of LDCs and developing nations.
- Everybody must be exposed to life-saving medications, medical help, and vaccines. Thus, pharmaceutical enterprises shouldn't strive to make an extraordinary profit from them. It creates moral and ethical dilemmas at stake here.
- Individuals are not safe until everyone is safe, a saying that applies primarily to the COVID-19 outbreak. However, given that it can swiftly spread to all continents, as was the scenario with the first wave, vaccines must be made obtainable to everyone in the affected countries.
- Rules that award monopolies and insert the right to primary healthcare under serious jeopardy must be repealed.

Contradicting Relaxation of TRIPS

Let's discuss some of the contradicting relaxations associated with TRIPS:

- Corporations wouldn't be able to retrieve the funds they invested in R&D unless they were reimbursed for their invention.
- Without the potential to dominate output, there won't be any motivation to encourage innovation.
- They also assert that corporations in impoverished countries are unwilling to generate immunizations or pharmaceuticals on a large scale.

Data Exclusivity and TRIPS

Data exclusivity is the practice of excluding data from use in a research study. It is a form of data mining that allows researchers to access data without handing over the raw data. This can be used to examine the impact of a new research technique or find out what factors affect how well a product performs. Data exclusivity can be used by researchers who want to gain insight into their subject's performance or by those who want to understand the factors that influence how well a product performs.

Data exclusivity can also be used by researchers who want to understand how much data they need to make an informed decision about their research topic. It can also be used by those who want to learn more about the subject under study and how well it performs. Data with high commercial value needs to be well protected. The developed world has put forth the demand for such protection that is not part of the TRIPS Agreement.

TRIPS Agreement - TRIPS Plus

They are not officially associated with TRIPs, despite the moniker "TRIPS-Plus." Instead, the phrase emphasizes that these expectations go above and beyond the fundamental commitments set forth under TRIPs. There is pressure on many FTA-affiliated developing nations to embrace these harsher requirements in their patent legislation.

TRIPS Agreement - Doha Declaration

In 2001, the Doha Declaration was ratified by WTO members. It reiterated TRIPs' adaptability in situations incorporating patent rights. This was done to facilitate access to appropriate medications. According to the Doha Declaration, the TRIPs agreement will not preclude governments from undertaking initiatives to protect public health. This loosened TRIPs guidelines. Everyone has recourse to life-saving medicines and immunizations. Pharmaceutical firms must not benefit from these.

Fears Expressed over the Doha Declaration

Corporate entities contended that they would incur losses relative to the sums invested in their research and development of their inventions were not recognized and compensated. Additionally, removing the right to monopoly in the pharmaceutical industry will lessen the incentives for innovation. Finally, the businesses contended that developing-nation companies could not produce medications and vaccines on a significant scale.

TRIMS

The agreement on Trade-Related Investment Measures or “TRIMs” acknowledges that investment measures can control and twist trade. This states World Trade Organisation members might not apply any measure that differentiates or leads to quantitative restrictions, both of which disobey any fundamental WTO rules.

A list of restricted TRIMS is a part of this agreement. The TRIMS Committee looks after the operation and execution of this agreement and allows members the chance to consult on any appropriate matters.

Agreement on TRIMs resulting from Uruguay recognises that certain investment measures may cause restrictive effects on international trade in goods.

Objectives of Trade-Related Investment Measures

TRIMs believe that there is a strong connection between trade and investment. The goal of trade-related investments measures is to give fair treatment to all investing members across the world.

As the TRIMs deal says, members have to inform the World Trade Organization (WTO) council to buy and sell various services and goods of their current TRIMs that are incompatible with the agreement.

Main Features of TRIMs

- It only applies to investment measures related to goods trade.
- This doesn't apply to service trade.
- It doesn't regulate the entry of foreign industry or investment.
- It is about the discriminatory treatment of imported/exported products.
- Concern measures were applied to both foreign domestic firms.
- A transition period of 2 years in the case of developed countries, 5 years in the case of developing countries and 7 years in the case of LDCs, from the date this agreement came into effect, which is 1st January 1995.

The TRIMs agreement has directly restricted the following.

1. Local Content Requirement

Local content requirement is the measure that if a developed country wants to trade their products in a developing country. Then the developing country wishes to agree on that deal if

and only if it uses one of the domestic items on their product. It means that the growth of domestic products will increase.

For example, suppose a mobile brand wants to sell its products in India. However, India agrees if only the brand uses the battery made in India. If that mobile brand agrees to this agreement, the value of 'made in India' batteries will increase gradually, which is India's benefit.

However, that mobile brand doesn't get proper profit because of purchasing those domestic products or using those products. In other words, a developing country is restricting developed countries from trading their products.

2. Trade Balancing Requirements

Trade balancing measures require that an enterprise's purchase of imported products is equivalent to the quantity or worth of exported products. In simple words, someone from India has a business of desi ghee, and they export it in foreign.

However, they want to expand their business and import foreign cheese. Then, Indian government gave them the condition that they could import the same amount of foreign cheese as the amount of desi ghee they export. Basically, balancing the import and export amount of product or trade is called Trade Balancing.

However, the government is restricting the individual as per the TRIMs agreement.

1. Foreign Exchange Restrictions

These include measures restricting importation by limiting access to foreign exchange.

2. Domestic Sales Requirements

By using domestic sales requirements, many nations restrict the export of domestic products and distort trade. Because of this, the value of those products gradually decreases. As a result, the production of those products is highly available in the market.

Developing countries are permitted to retain Trade-Related Investment Measures by virtue of the economic development needs of developing countries. In TRIMs, some restrictions are overlooked for the developing countries' economic needs.

Industrial Design

What is an Industrial Design?

The owner of a design patent or an industrial design that's registered has the rights to stop third parties from the following:

- Selling articles that have a copy of the design
- Making articles with a similar design
- Importing articles that bear a design that's a copy of the original one

Copies of any form are not allowed when the purpose is for commercial use. There is a wide range of products of handicraft and industry items that these designs apply to. This includes containers, packages, household goods, furnishing, jewelry, lighting equipment, textiles, and electronic devices. Industrial designs also apply to graphical user interfaces, logos, and graphic symbols. Most countries require an industrial design to be registered so it can be protected under industrial design and considered a registered design. Some countries allow unregistered industrial designs and scope limited protection.

Depending on what the design is and what the national law is, industrial designs can be protected under copyright law as works of art. Most countries grant industrial design rights for at least 10 years, although the duration varies in each country. Many countries allow the total duration the rights are protected for to be divided into renewable periods that are successive. These rights are enforced in court and the penalties and remedies vary in each country. The industrial design right shields the aesthetic or appearance features of a product, while an invention is protected by a patent with a new solution.

How Can One Protect Their Designs?

Industrial design protection covers a color, shape, surface pattern, line, or configuration of an article that increases or produces aesthetics and improves the appearance of a design, whether it's two-dimensional or three-dimensional. Protection rights last for a period of 10 years and can be renewed one time for an extra period of five years. In order for a design to qualify for protection, it must be non-obvious, visible on the finished article, applicable to the functional article, and have no prior disclosure of publication of the design.

Applying for Industrial Design Protection

Depending on what the laws are, industrial designs that are independently created must be novel or original. This will vary in each country and is usually considered to be novel or new if it hasn't been disclosed to the public previously. It's considered original if the design is different from other known designs. The office of the intellectual property grants industrial design patents or registrations based on the country where the application gets filed. An application to register the industrial design may be filed or one may be able to appoint an agent in some cases.

The filing cost for protection differs in each country, so it's best to talk to the national intellectual property office to find out more details on the exact fee structure. If filing for protection abroad, it's important to note that there will be more costs for using a local agent and for translation. Industrial design rights are considered territorial, meaning the rights are limited to the region where protection has been granted. No international or world industrial

design right exists. In order to get protection from another country, an application must be submitted for the industrial design for each country.

In order to avoid submitting multiple applications, WIPO's Hague System allows companies to register a maximum of 100 designs in a wide number of territories through one application. It's essential to file the application for registration before the patent is publicly destroyed. This way it retains its originality and novelty. Once the design gets disclosed to the public, it might become part of the public domain and is not considered original or new anymore.

Some countries do allow a grace period of six to twelve months to file after the disclosure of the design. This creates a safeguard for those who disclosed their design before filing for protection.

Integrated Circuits

The conventional method of making circuits was to select components like R, C, L, diode and semiconductors. There are so many factors stopping to build off big circuits like:

1. Bulky in size.
2. Not entirely shockproof
3. Reliability
4. More power consumption
5. Less durability

The concept of fabricating an entire circuit on a single small block (or chip) of a semiconductor has revolutionised electronics technology. Such a circuit is known as Integrated Circuit (IC).

What is an Integrated Circuit (IC)?

Before the discovery of ICs, the basic method of making circuits was to select the components like diodes, transistors, resistors, inductors and capacitors and connect them by shouldering. But due to size and power consumption issues, it was necessary to develop a small size circuit with less power consumption, reliability and shockproof.

After the invention of the semiconductors and transistors, things were quite simplified to a particular extent, but the development of integrated circuits changed electronics technology's face. Jack Kilby from Texas Instruments and Bob Noyce from Intel are the official creators of integrated circuits, and they did it independently.

The integrated circuit is a fundamental concept of electronics that builds on other basic concepts previously discussed in our syllabus. Therefore, for a quick reference, go through the articles listed below:

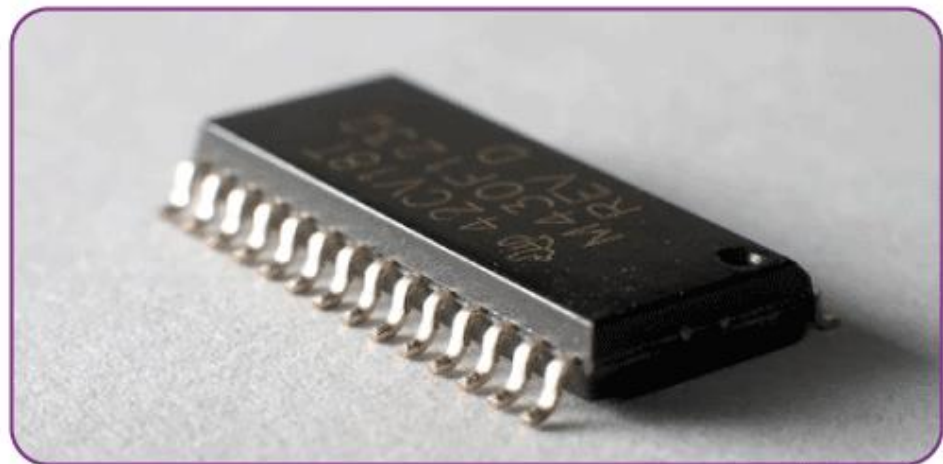
- Electric Circuits
- Resistors

- Transistors
- Diodes
- Capacitors

Definition of Integrated Chip

Integrated circuits are made up of several components such as R, C, L, diodes and transistors. They are built on a small single block or chip of a semiconductor known as an integrated circuit (IC). All of them work together to perform a particular task. The IC is easily breakable, so to be attached to a circuit board, it is often housed in a plastic package with metal pins.

INTEGRATED CIRCUIT



Integrated circuits can function as an oscillator, amplifiers, microprocessors or even as computer memory.

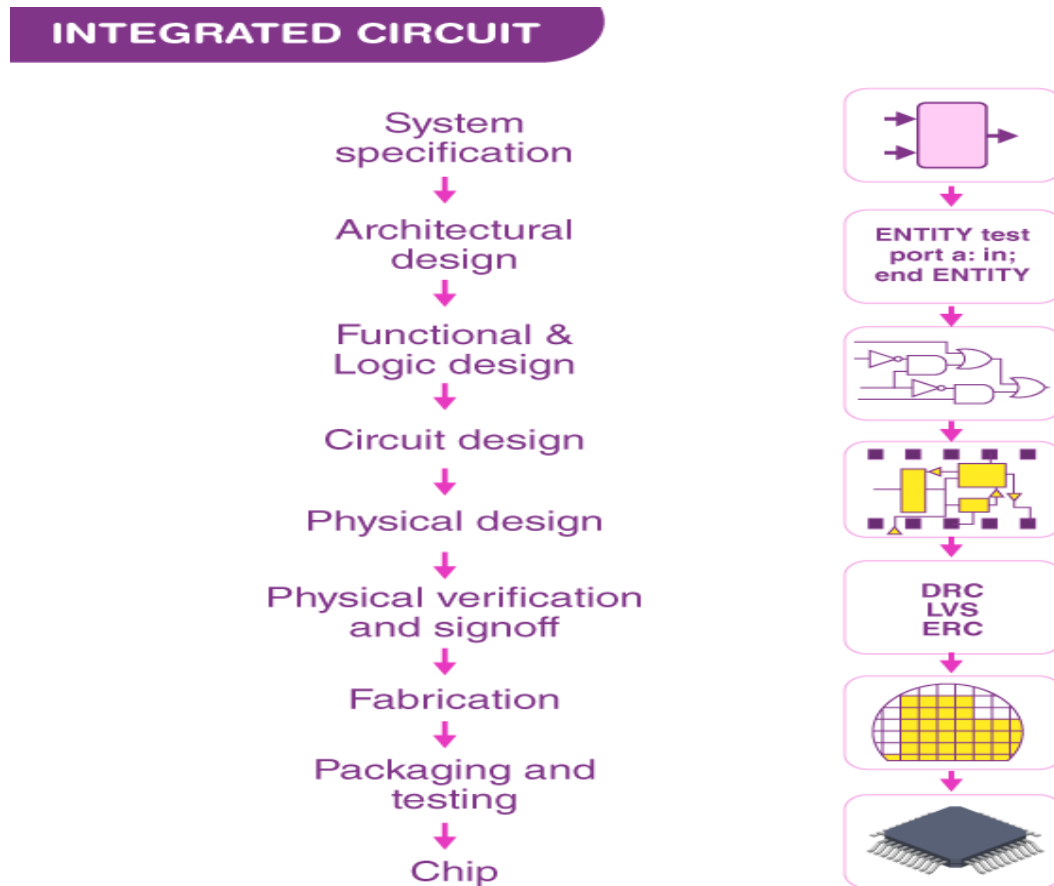
Integrated Circuit Design

An integrated circuit is created using certain logic methods and circuit layouts. The two categories of IC design are as follows:

- **Analog Design**
- **Digital Design**
- **Mixed Design**

Digital Design

The digital design approach is used to create integrated circuits (ICs), which are utilised as computer memories (such as RAM and ROM) and microprocessors. With this approach to design, the circuit density and overall efficiency are both maximised. The ICs created with this technique operate with binary input data like 0 and 1. The process for designing digital integrated circuits is depicted in the diagram below.



Analog Design

IC chip is created by using the analogue design process when:

- ICs are utilised as regulators, filters and oscillators.
- Optimal power dissipation, gain and resistance are required.

Mixed Design

The analog and digital design ideas are used in mixed designs. The mixed ICs perform either Analog to Digital or Digital to Analog conversions.

Integrated Circuit Construction

A complicated stacking of semiconductors, copper, and other related elements to create resistors, transistors, and other components is an integrated circuit. A die is a combination of these wafers that have been sliced and moulded.

The ICs' semiconductor wafers are delicate, and the connections between the layers are extremely complex. The ICs are packaged because an IC die is too small to solder and connect to. The delicate and tiny die is transformed into the familiar black chip by the IC packaging.

The connections between the layers are exceedingly complicated, and the semiconductor wafers used to make the ICs are delicate. Because an IC die is too small to solder, the ICs are packed.

All integrated circuits (ICs) are polarised, and each pin has a specific location and functionality. As seen in the illustration below, integrated chips employ a notch or a dot to denote the first pin.

The subsequent PINs rise consecutively in a counterclockwise way around the chip after the first pin is identified.

Integrated Circuit Features

Construction & Packaging

ICs are built with semiconducting components such as silicon. Because of the small size and delicate nature of IC, a series of tiny gold and aluminium wires are joined together and moulded into a flat block of plastic or ceramic. Metal pins on the block's exterior link to cables inside. The solid block stops the chip from overheating and keeps it cool.

Size of an IC

The size of the integrated chip varies between 1 square mm to more than 200 mm.

Integration of an IC

Because they combine various devices on one chip, integrated chips get their name. A microcontroller is an integrated circuit (IC) that combines a microprocessor, memory, and interface into a single unit.

Commonly Used ICs

Logic Gate ICs

The combinational circuit generates logical outputs based on a variety of input signals. It may only have two to three inputs but one output.

Timer ICs

A Timer IC is produced with accurate timing cycles with a 100 % or 50 % duty cycle.

Operational Amplifiers

An OpAmp or an Operational Amplifier is a high gain voltage amplifier with a differential input and a single-ended output.

Voltage Regulators

A voltage regulator IC provides a constant DC output irrespective of the changes in DC input.

Geographical Indications

What is meant by ‘Geographical Indications’?

Article 22 of the TRIPS Agreements defines Geographical Indication as "indications which identify a good as originating in the territory of a Member, or a region or locality in that territory, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin".

In simpler words, a GI tag is a proof of where the product is born or produced. Such a tag acts as a signaling device that helps producers to differentiate their products from competing products in the market on the basis of place of origin and enables them to build reputation and goodwill around their products, as a result of which the goods fetch a premium price.

A comparative analysis between two types of Intellectual Property – trademarks and GIs, shall help understanding the basis of GIs. A trademark is a sign used by an enterprise in order to distinguish its goods and services from those of others and in turn gives its owner the right to exclude others from using the same. Similarly, a geographical indication acts as a source of origin and has certain characteristics that exist due to the geographical location. However, it is pertinent to note that a geographical indication is not an individual property for use only by the owner but instead a public property, and allows every producer in the specified region to use the said GI as long as the superior quality of the GI goods is attributable to the said region.

Apart from acting as a source identifier, a GI performs other functions as well. Some of the said functions are as follows:

- i) Provides an indication of quality of the goods: A GI tag symbolizes that the specified goods have special qualities as a result of their origin and the said qualities will not be present in other goods of the same category. A GI guarantees that the quality of the goods meets the expectations of the end consumer.
- ii) Culture protecting function: A GI protects local culture by preserving traditional productions methods, habits of consumption and cultural identity.

iv) Boosting the economy as a result of increase in exports: GIs promote economic prosperity by boosting exports as there is a higher demand for goods with GI tags since they let consumers know that the goods come from an area where a given quality, reputation or other characteristic of the goods is essentially attributable to their geographic origin.

Geographical Indications and India

India has a diverse landscape, an extensive rural network and several indigenous goods in the form of handicrafts (Kani Shawl, Bastar Iron Craft) as well as local produce (Nashik Grapes, Mizo Chilly). As a result of being richly endowed with natural and agricultural products, effective protection for GIs was of extreme importance for India.

Thus, in view of the above and in compliance with the TRIPS Agreement of the WTO, 'The Geographical Indications of Goods (Registration and Protection) Act, 1999 (GI Act, 1999) came into force to provide protection to the goods registered under the Act.

The object of the Geographical Indications of Goods (Registration and Protection) Act, 1999, is threefold,

1. By specific law governing the geographical indication of goods in the country which could adequately protect the interest of producers of such goods,
2. To exclude unauthorized persons from misusing geographical indications and to protect consumers from deception and,
3. To promote goods bearing Indian Geographical Indication in the export market.

Further, as per Section 2(1)(e) of the GI Act, 1999^[3], a geographical indication is a sign used on products that have a specific geographical origin and possess qualities or a reputation that are due to that origin. Since the qualities depend on the geographical place of production, there is a clear link between the product and its original place of production.

A striking feature of Indian GIs is the broad variety of product categories which they cater to. The list ranges from agricultural and horticultural products to textiles, handicrafts, paintings and beverages, among other things.

As per Section 11(a) of the GI Act, 1999^[4], an application for registration can be made in writing with the Registrar by an association of persons or producers or any organization or authority established by or under any law, provided the same is in the interest of the producers of the concerned goods.

In order to strengthen GI protection, India submitted two proposals at WTO on Intellectual Property Rights issues covering geographical indications. Additionally, India along with Cuba, Egypt, Indonesia and Pakistan also submitted a joint proposal requesting the additional protection given to wines and spirits, to be extended to other products as well. In the Indian context, this shall help export of agricultural and indigenous products like Basmati rice, Darjeeling tea, alphonso mangoes, which are in abundance in India.

As per the available data, India holds more than 85% share of the global 'Basmati' exports. Further, the European Union had a share of about 8% in India's total basmati rice exports during April-May 2020. Thus, European Union is a major market for Indian products and produce specially basmati rice. Recently, the European Commission has also published India's GI application for 'Basmati' rice in the European Union.

Further, in another recent matter, the mark 'KASHMIR', applied for in respect of furniture, has been accepted by the Romanian IP Office (OSIM). Not only is KASHMIR a commonly known place, but also is closely associated and well-known with various handicrafts, including wooden furniture.

Out of 370 registered GI names on the Indian GI Register, approximately 60% are for handicrafts and in view of the same, one of the issues pertinent for India is the protection of its handicrafts in the European Union, as the European Union has no laws to protect non-agricultural goods under its GI laws.

Establishment of WIPO

Introduction

WIPO, which stands for the World Intellectual Property Organisation, was formed on 14th July 1967 and it is headquartered in Geneva, Switzerland. This article will discuss the history of WIPO, how it took the shape into what it is now, what are the missions, functions, goals of WIPO and how it is working for the betterment of Intellectual Property rights around the world.

World Intellectual Property Organisation

World Intellectual Property Organisation is an organisation based in Geneva and it works with the vision of encouraging creative activity and for promoting the protection of Intellectual Property throughout the world. WIPO is one of the 15 specialised agencies of the United Nations. Currently, there are 193 members in the World Intellectual Property Organisation. WIPO, at the time when it started, was originally about promoting the protection of intellectual property, but when it joined the United Nations in 1974, the objective was redefined as public interest or humanitarian goal. Article 1 of the key agreement establishing WIPO's relationship to the UN restates WIPO's purpose as: "for promoting creative intellectual activity and for facilitating the transfer of technology related to the industrial property to the developing countries in order to accelerate economic, social and cultural development..."

WIPO is a unique organisation among the UN organisations, its activities largely are self-funded, according to the Program and Budget of WIPO for the year 2020-2021, the expected income for the biennium will be over 880 million Swiss francs and the expected expenditure is 768 million Swiss francs. WIPO has expected that nearly 95% of the expected income is going to be generated from the fees that the organisation will receive for their services.

The World Intellectual Property Organisation is the oldest organization in the field of IP protection. Actually, it was created at the diplomatic conference in 1893.

Strategic Goals of WIPO

WIPO works on a 5-year based planned format, the current 5-year plan which is running is from 2017-2021. WIPO makes strategic goals, Implementing Activities and Milestones for a 5-year term and they envision their growth according to that.

The strategic goal number 1 is to use IP assets to advance research and development(R&D) for neglected tropical diseases(NTDs), malaria, and TB through collaboration. The implementing activities for the same goal include establishing and maintaining the Special Programme for Research and Training in Tropical Diseases and others and this work shall be done in collaboration. Establishing new collaborations that can take care of the priority needs and which can provide assistance and support is a major part of the implementing activities, this will also require expansion in the number of company providers who can offer assets and support for the operations of WIPO. The milestones that are expected to be achieved are establishing at least eight new collaborations on an annual basis, preparing comprehensive IP management strategies for two or three partnerships per year.

The strategic goal number 2 is to accelerate the advancement of promising compounds or leads. The implementing activities for this include assisting collaborators for obtaining grants for donor agencies, this will help to accelerate the progress. The projects with high potential for the compound or lead will move rapidly to later stages of evaluation and they will be given the highest priority. The milestones to be achieved by this are connecting two to three partnerships or collaborations per year to relevant funding.

The strategic goal number 3 is to enhance global capacity for IP management and biomedical R&D. The implementing activities include supporting the capacity development of member organisations, providing them research fellowships at leading research centres for the same. Milestone for this goal is providing two to four training sabbaticals annually.

The strategic goal number 4 is to communicate the beneficial role of IP in innovation for NTDs, malaria, and TB. The implementing activities include increasing dissemination of information about the role of IP for R&D in NTDs, malaria, and TB. This is the technology-driven goal to combat the issues in hand. Milestones for this goal are to provide a user-friendly web page consisting of all the available resources which would help facilitate the formation of partnerships and update annually based on users' feedback. This will also publish at least four articles in journals and magazines, it will also make at least six presentations in the subject matter meetings.

Mission

The mission of WIPO is to establish a comprehensive, well balanced and effective system for the protection and enforcement of Intellectual Property Rights. Article 1 of the agreement between WIPO and the UN in 1974 says that “to accelerate economic, social and cultural development”; this is a redefined version from what it earlier used to be and this happened because of the WIPO becoming a part of the UN and the UN works for a larger set of people and is dedicated towards the development of the global society.

Work towards gender equality- WIPO wishes to create an atmosphere where gender equality exists, where men and women are respected in equal measure and they hold important and decision making positions equally. As a lead agency within the UN, WIPO has launched some initiatives which are targeted for awareness-raising, capacity building and leadership.

Leadership– International gender Champions Network is the name of the initiative taken towards leadership from women of the world. Launched in 2015 and at that time the Director-General of WIPO, Francis Gurry was one of the first people to join this initiative.

Raising gender awareness– WIPO has taken a lot of initiatives under the idea of raising gender awareness, example- Celebrating the achievements of women, in 2018 the campaign for World Intellectual Property Day was ‘Powering change: Women in innovation and creativity’.

Another example of initiatives taken by WIPO for gender equality is strengthening data gathering on the use of the IP system by women, the annual data showing Intellectual Property Indicators and Patent Cooperation Treaty Yearly Review will provide the data on the gender dimension of international patenting activity.

Empowering women through IP knowledge is another initiative by WIPO in the direction of gender equality, under this initiative since 1998 WIPO has been empowering women through its IP training and capacity building programs. Out of the estimated 50,000 students that have enrolled with WIPO for such programs, half of them are women.

A growing number of member states present more participation of women in WIPO as delegates and these women provide leadership even though in an unofficial capacity but they are remarkably successful. Women delegates from developing countries, especially from the likes of India and Argentina have proven to be instrumental in building consensus and promoting the developing agenda at WIPO.

Functions

The main functions of WIPO include:

- Assisting campaigns development to improve IP protection all over the world and to harmonize national legislation in this field,
- Signing the international agreements on IP protection,
- Applying the administrative functions of the Paris and Berne Unions,
- Rendering technical and legal assistance in the field of IP,
- collecting and disseminating the information, conducting researches and publishing their results,
- ensuring the work of the services facilitating the international IP protection,
- applying any other appropriate actions.

Administering multilateral international conventions stands to be the most important function done by WIPO, that includes depositing treaties, states' instruments of conflict settlement, ensuring treaties review etc.

WIPO Worldwide Academy has been preparing human resources in the field of IP protection since 1998. This academy provides a distance learning centre where you can gain knowledge with the help of the internet. WIPO Arbitration and Mediation centre were created in 1994, it helps in settling/resolving conflicts.

History of formation

Paris Convention– It all started with the Paris Convention of 1883, the Paris Convention for the Protection of Industrial Property is considered to be the first major step taken towards helping creators to ensure that their intellectual works are protected around the world.

Berne Convention– It started with a campaign by a French writer Victor Hugo, the aim behind it was to give the creators their right to control and to receive payments for the creative done by them on an international level.

Madrid Agreement– The first international IP filing serving was launched in the form of the Madrid Agreement. This agreement was also the first leap towards WIPO.

BIRPI- The United International Bureaux for the Protection of Intellectual Property, 1893 was known better by its French acronym BIRPI. Based in Switzerland, this organisation was the predecessor of WIPO.

WIPO- Headquartered in Geneva, Switzerland, WIPO is what came out of BIRPI and is a product of all those important Conventions and Agreements held before it. WIPO joined the United Nations in 1974.

World Intellectual Property Indicator

The World Intellectual Property Indicator is an annual report published by the World Intellectual Property Organisation, the wide range of indicators that it provides, they cover the areas of intellectual property. The data required for the indicators is provided by national and regional IP offices, the WIPO, World Bank and UNESCO. This annual report has been published by WIPO since 2009.

China dominates the charts when it comes to the data published by WIPO, out of the total patent applications filed worldwide in 2018(3,326,300), 1,542,002 were filed in China which is 46.4% share of the world and the numbers saw a rise by 11.6% when compared to the data published in 2017. Not just for the patent applications but in other fields too, China proves the absolute domination by a large number, like in Utility Models China's share of the world is 96.6%, in Trademarks, it is 51.4%, Industrial Designs, it is 54%, Plant Varieties: 28.5%. With each passing year, a significant rise in the number of applications filed worldwide in all these categories is seen.

Geneva Declaration on the Future of WIPO

In September of 2004, the Geneva declaration on the future of WIPO was published. The people involved in that declaration included prominent legal scholars, public interest NGOs, activists, a former French Prime Minister, a 2002 Nobel prize winner for physiology, scientists and several other concerned citizens of the global society. The declaration was for WIPO to reform its "culture of creating and expanding monopoly privileges, often without regard to the consequences." The declaration said that WIPO's "continuous expansion of these privileges and their enforcement mechanisms has led to grave social and economic costs, and has hampered and threatened other important systems of creativity and innovation."

The declaration was about the excessive protection of intellectual property being put up by the WIPO, the declaration was to make WIPO understand the real economic and social consequences of it. It demanded them to strike a balance between public domain and competition on one side and realm of property rights on the other. It highlighted that the steps being taken can prove to be hazardous for the much-needed factor of competition in the market. The declaration pointed out important factors of countries which are struggling to meet the basic needs of their citizens and it said that a "one size fits all" approach which the WIPO has adopted is causing excessive burden on these countries and if it continues being this way, it will eventually drag them to dust.

This declaration which had no legal significance did a very impressive job in igniting that spark which fuelled many debates on the practices of WIPO, this statement which was made by the declaration was heard all over the world and it garnered a lot of attention from around the world. That was a collectively powered strong word by some of the most prominent people of the global society and it did what it was supposed to do; bring attention to these practices.

The 2004 WIPO General Assembly adopted the resolution which establishes a development agenda to reform the practices of WIPO of blindly increasing intellectual property rights.

IPRs Application and Procedures.

Patents

- **Law:** Patents Act, 1970; Patents (Amendment) Act, 2005; Patents Rules, 2003; Patent (Amendment) Rules, 2020
- **Relevant Ministry:** Office of the Controller General of Patents, Designs and Trade Marks (Indian Patent Office), Department for Promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce and industry

A patent is a legal right that confers monopoly to a person for their invention.

According to the Patents Act, 1970, an 'invention' must fulfill three criteria:

- It must be a new product or a process that did not previously exist
- It must offer a new technical improvement as simple changes to a previously known technique cannot be patented
- The proposed invention must be useful

Once a product or process is patented, it cannot be commercially produced, distributed, used, or sold without the consent of the patent owner.

India grants patent rights on a first-to-apply basis. The application for a patent can be made by either:

- The inventor
- The assignee
- The legal representative of the inventor

Patent application may also be made jointly by two or more corporations as assignees. A foreign national resident can also apply and obtain a patent in India.

Patent registration procedure

- **Patentability search:** The patentability search is the first step in the patent registration process. The uniqueness, ingenuity, industrial applicability, and enablement of the invention are evaluated through a patentable search.
- **Drafting the patent application:** If an invention is found to be patentable following a search, the applicant must write a patent application that details the invention. The first step after drafting a patent application is to file the patent application.
- **Filing a patent application:** The next step is filing the patent application. Applications must include the invention's specifications as well as any other necessary or pertinent information. To obtain a patent registration for their innovation, an applicant may submit both a provisional and a full application.
- **Publication of application:** The Indian patent Office (IPO) publishes the application in the official patent journal, making it available in the public domain after 18 months from the date of filing or priority. An early publication request is possible.
- **Examination of application:** After publication, the patent office examines the application. Unlike publication, examination doesn't occur automatically upon filing.
- **Objection by the Examiner:** The Examiner scrutinizes the application and issues a report stating all objections related to the application, based on the information mentioned in the application.
- **Office action response:** The applicant must respond to the Examiner's objections to receive a patent grant. They have a maximum of six months from the first examination report's issuing date to respond. The duration can be extended by three months with a request to the IPO.
- **Grant of patent registration:** Once the application addresses all the objections raised by the Examiner, the patent office grants the patent registration and publishes it in the patent gazette.

Essential ingredients of complete specification under patent registration

- Title and preamble
- Prior art
- Loopholes in the prior art
- Solution to drawbacks
- Summary of the invention
- Statement of invention
- Particulars of invention
- Particulars regarding drawings
- Examples
- Claims

Documents required for patent registration in India

For Patent registration, the below-mentioned forms and documents are required:

Form 1: Application for grant of patent	• Identity proof of the inventor and assignee • Address proof of the inventor and assignee • Contact details • Information corresponding to prior patent applications relating to the current invention, which the applicant or any authorized entity has filed • Some declarations, among other information
Form 2: Provisional/complete specification	Form 2 is used to furnish the applicant's patent specification. It may be provisional or a complete patent specification, depending on the type of patent application being filed.
Form 3: Statement and undertaking under Section 8	• Particulars of assignments • Details of foreign filing
Form 5: Declaration as to inventorship	This application is used to declare the inventor(s) of the current patent application.
Technical information	• Background of the invention • Disclosure of need of invention • Summary of the invention

	Description of how the invention works
Form 18	Request for Examination
Form 19	Request for Early Publication
Form 26	Disclosure of Power of Authority (If assigned to the Patent Agent)
Form 9	Request for Publication. This is optional if the express publication is required.

Trademarks

- Law:** Trademark Act, 1999; The Trade Marks (Amendment) Act, 2010; Trade Marks Rules, 2003; Trade Marks Rules, 2017
- Relevant Ministry:** DPIIT, Ministry of Commerce and Industry

For a business, its trademark is among its most valuable assets. The company's trademark protects its distinctive sign or indicator. This may be a symbol, logo, word, phrase, name, sound, design or an image that symbolizes the brand value or goodwill associated with the business or its product and services.

In India, trademarks are registered under the federal registration system with the support of five regional offices: Ahmedabad, Chennai, Delhi, Kolkata, and Mumbai. The Trade Mark Act of 1999 provides trademark rules for the registration, regulation, and protection of trademarks in India. DIPP recently revamped old trademark rules for registering trademarks in India.

Trademark registration procedure

- Conduct the trademark search**
- Filing trademark application:** The first and foremost step is to file the prescribed application at the Trademark Registry India. The applicant can also file the application

online. After filing the said application, an acknowledgement receipt is generated by the official portal for future reference.

- **Verification of application and documents:** After filing an application with India's Trademark Registry, the scrutiny process begins and is conducted by a designated official known as an Examiner. The verification process can take around 12-18 months. After inspection, the Examiner may accept the mark unconditionally, conditionally, or object to it.
- If the mark is accepted unconditionally, it will be published in the Trademark Journal.
- If it is not accepted unconditionally, the Examiner will stipulate conditions to be met or objections that must be addressed. The applicant will be given one month to meet the conditions or respond to the objections. If the Examiner finds the applicant's response satisfactory, the trademark in question will be published in the Trademark Journal.
- If the response is not accepted, the applicant will have the chance to represent their case in a hearing. Upon receiving a satisfactory response from the applicant, the Examiner may render their approval and publish the concerned mark in the Trademark Journal.
- **Publication of trademark in trademark journal:** The publication of the mark in the trademark journal enables the authority to invite objections from third parties if no objections are raised within the specified time frame. The authority can provide approval for the next step. On the contrary, if the mark somehow attracts some objections, the authority would conduct a fair hearing.
- **Grant of trademark registration by registrar:** The applicant is subsequently presented with a registration certificate by the registrar, which has a ten-year validity period. The trademark office seal must be included by the registrar on the certificate.

The whole process takes about 15 to 18 months. The trademark is valid for 10 years starting from the date of issuance of the certificate. It can be renewed for another 10 years on the payment of the prescribed fees.

Documents required for trademark registration in India

- Applicant's identity proof
- PAN
- Aadhar card
- Passport
- Certificate of Incorporation (COI), in case of companies registered under Company Act, 2013
- Logo if it is applicable and available
- Address proof

Copyrights

- **Law:** Copyrights Act 1957; The Copyright (Amendment) Act, 2012; Copyright (Amendment) Rules, 2021
- **Relevant Ministry:** Copyright Office, Ministry of Human Resource Development

India has a very strong and comprehensive copyright law based on the Indian Copyright Act of 1957. The copyright law is fully compatible with international norms like the Berne Convention, Trade Related Aspects of Intellectual Property Rights (TRIPS) Agreement, and the World Intellectual Property Organization (WIPO) Copyright Treaty (WCT).

Find Business Support

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A copyright grants the exclusive right to the creator to control reproduction or adaptation of their work for a certain period of time. Unlike trademarks and patents, a copyright protects the unique expression of ideas and not the idea itself. Further, copyright registration cannot be obtained for titles or names, short word combinations, slogans, short phrases – as these can only be trademarked.

Types of works eligible for copyright registration

- Artistic works
- Producers of cinematograph films
- Music voice recordings
- Literary works
- Musical works, including any accompanying words
- Dramatic works, including any accompanying music
- Pantomimes (drama) and choreographic works
- Pictorial, graphic, and sculptural works
- Motion pictures and other audio-visual works
- Sound recordings

Registration procedure for filing the copyright registration

- Create a user ID and password at the official site, **copyright.gov.in**.
- **File application form:** An applicant can apply either manually in the copyright office or through an e-filing facility available on the official website. Here, the applicant can be the author of the work, the owner of an exclusive right to the work, or an authorized agent.

- **Examination of application:** After the application is filed, the next step is the examination of the copyright application. A minimum waiting period of 30 days is provided for the copyright Examiner to review the application once the diary number is issued. The copyright registration process is then divided into two segments:
 - **Objections raised:** If an objection is raised by someone against the applicant, a letter is sent to both parties, and they are called for a hearing by the registrar. If the objection is rejected upon hearing, the applicant can ask for scrutiny, and the discrepancy procedure is followed.
 - **No objections raised:** If no objections are raised, the Examiner reviews and scrutinizes the application for any disparities. If no discrepancies arise and all necessary documents are provided, the applicant can proceed to the next step. However, if inconsistencies are found, a letter of discrepancy is sent to the applicant. The applicant must reply, and a hearing is conducted by the registrar. Once the difference is resolved, the applicant can move on to the next step. If the difference cannot be resolved, the application is rejected, and a rejection letter is sent to the applicant.
- **Issuance of registration certificate:** The certificate of copyright registration is issued at the final stage. The Registrar could ask for more details or documents at this point. The information regarding the copyright application will be recorded in the register of copyrights, and a certificate of registration will be granted, if the Registrar is fully satisfied with the application made by the applicant.

Documents required for copyright registration in India

Basic documents	• Particulars of the applicant (ID and Address proof of the applicant along with the nationality). • Name, address, and nationality of the author of the work. • Disclosure of the applicant's interest in the copyright – whether they are the author of the work or the representative of the author. • Copies of the original work. • In case for business purpose – incorporation certificate is required. • Details of the nature of the work. • Class, title and description of the work. • Language of the work.
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	• Date of publication – Publication in internal magazines or a research paper submitted to a professor does not count as publication.
Artistic work	• Two copies of the work. • Demand draft of INR (as applicable) according to artistic work. • Author's No Objection Certificate (NOC) if the applicant is different from the author. • Publisher's NOC if the work published and publisher is different from the applicant. • Search certificate from Trade Mark Office in TM-60 if the work is being used on goods or items capable of being used on the goods. • NOC from the individual whose photograph appears on the work. • When filing an application by an attorney, an original copy of a "Power of Attorney" signed by the applicant and also accepted by the attorney.
Cinematograph film	• Two copies of the work. • Demand draft of INR (as applicable) according to cinematographic work. • NOC from different copyright holders or copy of the agreement (deed of assignment). • NOC from the publisher if the work published and publisher is different from the applicant. • When filing an application through an attorney, an original copy of a "Power of

	Attorney” signed by the applicant & also accepted by the attorney.
Music	• Two copies of the work (graphical notes). • Demand draft of INR (as applicable) according to work. • NOC from the publisher if the work published and publisher is different from the applicant. • Author’s NOC if the applicant is other than the author. • When filing an application by an attorney, an original copy of a “Power of Attorney” duly signed by the applicant & also accepted by the attorney.
Software	• Two copies of the work (graphical notes). • Demand draft of INR (as applicable) according to work. • NOC from the publisher if the work published and publisher is different from the applicant. • Author’s NOC if the applicant is other than the author. • When filing an application through an attorney, an original copy of a “Power of Attorney” signed by the applicant & also accepted by the attorney. • The source code and the object code of the work for due verification.

Industrial designs

- **Law:** Designs Act, 2000; Designs Rules, 2001; The Designs (Amendment), Rules, 2021
- **Relevant Ministry:** DPIIT, Ministry of Commerce and industry

A design refers to the distinctive visual characteristics of an article, such as its shape, figure, blueprints, decorations, or arrangement of lines and colors, or a combination of these, created through any manufacturing method, whether manual, mechanical, automated, chemical, or a combination thereof, in either two-dimensional or three-dimensional form. The purpose of obtaining design registration under the Designs Act is to protect a unique or innovative design that is intended to be applied to a particular article during the manufacturing process using an industrial process or method.

Industrial design registration procedure

The industrial design registration procedure involves the following steps:

- **Examination:** The Controller of Designs refers the application to an Examiner of Designs who checks if the application and documents meet formal requirements and if the design is registrable under the Designs Act and Rules.
- **Formality check:** The Examiner ensures that the application is in the prescribed format, fee is paid, applicant's details are provided, and declaration of proprietorship is given. The representation sheet is checked to ensure it complies with Rule 14, and a power of authority is filed if applicable.
- **Substantive examination:** The Examiner checks if the design is new, original, and not prejudicial to public order, morality, or security of India.
- **Consideration of Examiner's report:** If the design is eligible for registration, the Controller registers it and issues a certificate. If objections arise, the applicant is informed, and a statement of objections is communicated. The applicant must comply with the objections or apply for a hearing within three months. If the applicant fails to comply, the application is deemed withdrawn.
- **Design registration and publication:** Registered designs are published in the Patent Office Journal within one month of registration, and the registration number is the same as the application number.
- **Register of Designs:** All registered designs are entered in the Register of Designs maintained at the Patent Office in Kolkata, which is available for public inspection. An e-register is also available on the IPO official portal.

Once the application is accepted, it is notified in the patent office journal and is valid for a period of 10 years from the date of registration. The period may be extended by five years by filing an application for renewal along with the prescribed fee.

Documents required for design registration in India

To file a design application, certain documents and forms need to be prepared and submitted as per the Design Rules. These include:

- Form 1, which should be filled out in the prescribed format as mentioned in Schedule II of the Designs Rules.
- Representations must be prepared in accordance with Rules 12, 13, and 14 of the Design Rules and submitted in duplicate.
- If the application is filed through a patent agent or an advocate, Form 21, the Power of Authority/General Power of Authority (GPA), should be submitted in the original. This form is also mentioned in Schedule II.
- If a copy of the GPA is filed, it should be endorsed with the design application number with which the original GPA was filed.
- Form 24 in the prescribed format should be submitted if the applicant is claiming small entity status, as mentioned in Schedule-II of the Designs Rules. If the applicant is an Indian entity, evidence of registration under the MSME Act, 2006, should also be provided. In the case of foreign entities, an affidavit should be deposed by the applicant or an authorized signatory as per Rule 42 of the Designs Rules.
- The original Priority document should be submitted under Rule 15 of the Designs Rules.
- An authenticated English-translated copy of the priority document should be submitted if the original priority document is in a language other than English.
- If the applicant for the priority application in the convention country is different from the Indian applicant, an assignment in the original format should be submitted.

Geographical indications (GI)

- **Law:** The Geographical Indications of Goods (Registration and protection) Act, 1999; The Geographical Indications of Goods (Registration and Protection) (Amendment) Rules, 2020
- **Relevant Ministry:** DPIIT, Ministry of Commerce and industry

A geographical indication (GI) is a tag used on products based on their geographical uniqueness. The uniqueness of a product is defined either by its origin, process, or availability. GI tags usually help businesses enhance their marketability.

Requirements for registering GI in India: Essential qualifications and prerequisites

- To be eligible for the registration of a geographical indication in India, certain prerequisites and qualifications must be fulfilled, which include:
- The product should originate from a specific geographical location.
- The product should have distinctive qualities, characteristics, or a reputation that are primarily associated with its geographical origin.
- The product should not fall under any prohibited categories, such as generic names or indications that are against public order or morality.

- The applicant must be either an association of persons, producers, or any organization that represents the interests of the producers.
- The applicant should have direct involvement in the production, marketing, or sale of the product.

GI registration procedure in India: To register a geographical indication in India, the following steps need to be taken:

- Conduct a search to confirm that the proposed geographical indication is not already registered or pending registration.
- Prepare the application for registration of the geographical indication in the prescribed form, along with the required documents.
- File the application with the Geographical Indications Registry, along with the prescribed fee.
- The Geographical Indications Registry examines the application to ensure that it meets the eligibility criteria and prerequisites for registration.
- If the application is accepted, the geographical indication is published in the Geographical Indications Journal.
- Any individual may oppose the registration of the geographical indication within three months of its publication in the Geographical Indications Journal.
- If there is no opposition or the opposition is dismissed, the geographical indication is registered, and the registered proprietor has the right to use the registered GI tag on the product.

The registration of a geographical indication is valid for a period of 10 years. It can be renewed for another 10 years at any time.

Documents required for GI registration in India

The following documents are required for the registration of a geographical indication in India:

- Application for registration in the prescribed form.
- Statement of case.
- Details of the product, including its unique features, method of production, and the link between the product and its geographical origin.
- Evidence to establish the link between the product and its geographical origin, such as maps, photographs, and historical records.
- Authorization letter, if the application is filed by an agent.
- Power of attorney, if the application is filed by a legal representative.
- If applicable, a certified copy of the priority document.

*****ALL THE BEST*****